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TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture

Subchapter B—Loans, Purchases, and Other Operations

PART 472—WOOL

SUBPART—1955 PAYMENT PROGRAM FOR LAMBS AND YEARLINGS (PULLED WOOL)

The regulations in this subpart state the requirements with respect to the 1955 payment program for lambs and yearlings (pulled wool), formulated by Commodity Credit Corporation (hereinafter referred to as CCC) and the Commodity Stabilization Service (hereinafter referred to as CSS). The regulations in this subpart may be referred to as the 1955 Payment Program for Lambs and Yearlings (Pulled Wool).

Sec.

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AUTHORITY: §§ 472.651 to 472.674 issued under sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 702–709, 68 Stat. 910–912; 15 U. S. C. 714c, 7 U. S. C. 1781–1787, 1446.

§ 472.651 *Administration and general principle of program*—(a) *Administration.* The program will be carried out by CSS under the general supervision and direction of the Executive Vice President of CCC. In the field, the program will be administered through the Agricultural Stabilization and Conservation (hereinafter referred to as ASC) State and County Offices. ASC State and county offices do not have authority to modify any of the provisions of this subpart or any of the amendments or supplements thereto. Neither are they authorized to waive any such provisions unless the power to waive is expressly included in the pertinent provision.

(b) *General principle of program.* The general principle of this pulled wool program is that if a producer's lambs or yearlings are sold, with the wool on them, to a slaughterer for slaughter, the producer shall receive a payment in relationship to the payment he would receive under the 1955 Incentive Payment Program for Shorn Wool (§§ 472.600 to 472.620) if he were to shear the animals and sell the wool (see § 472.652). Not more than one payment will be made to any person or persons on a sale or sales of the same lambs or yearlings under this program.

§ 472.652 *Rate of payment.* The National Wool Act of 1954 provides in section 703 that the support price for pulled wool shall be established at such a level, in relationship to the support price for shorn wool, as the Secretary determines will maintain normal marketing practices for pulled wool. The support price for shorn wool has been determined to be 62 cents per pound, grease basis (§ 472.601). Payments on shorn wool will be made on a percentage basis, by applying, to the net sales proceeds received by the producer, a percentage which is based on the difference between the national average price received by producers during the 1955 marketing year and the incentive price of 62 cents (§ 472.605). Payments under the pulled wool program will be made for wool on lambs and yearlings in accordance with this subpart and will be at a flat rate per hundredweight of live animals. The payments will be based on the average weight of wool per hundredweight of animals (5 pounds) multi-

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FEDERAL REGISTER

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plied by 80 percent of the difference between the national average price received by producers for shorn wool and the 1955 incentive price of 62 cents per pound of shorn wool. Announcement of this method of determining the rate of payment on lambs and yearlings was made by the Department of Agriculture on January 7, 1955. The exact rate of payment will be determined after the end of the 1955 marketing year. For definition of "lambs," "yearlings," "producer," and "1955 marketing year," see § 472.673.

§ 472.653 *Marketing situations in which producers or slaughterers are entitled to payment.* Generally, the aim of various provisions of this subpart is to provide a method whereby the certification that the lambs and yearlings were purchased for slaughter can, through normal trade channels and as expeditiously as possible, be made available to the producer for his use in applying for payment. Procedure is established enabling the producer to apply for a payment in the various situations in which he markets his lambs and yearlings, and also enabling a slaughterer in his capacity as a producer under certain circumstances to do so, those situations being as follows: (a) A producer may sell his lambs or yearlings directly to a slaughterer (defined in § 472.673) for slaughter; (b) a producer may sell his lambs or yearlings, through a commission firm registered under the Packers and Stockyards Act, to a slaughterer for slaughter; (c) a producer may sell his lambs or yearlings to a dealer registered under the Packers and Stockyards Act, the dealer thereafter selling them to a slaughterer for slaughter; (d) a producer may sell his lambs or yearlings to or through another person, such other person selling the animals to a slaughterer for slaughter; (e) there may be two or more registered commission firms or dealers participating in the marketing process between the producer and the slaughterer; and (f) a slaughterer may slaughter lambs or yearlings, after feeding them for at least 30 days.

§ 472.654 *Eligibility for payments on lambs and yearlings.* Before payments under this program can be approved pursuant to an application covering any lot or lots of lambs or yearlings, the following requirements must be satisfied:

(a) *Fed or pastured in United States.* The animals must have been fed or pastured in the continental United States, its territories, or possessions.

(b) *Thirty days' ownership.* If a producer is to qualify for a payment he must have owned the animals for 30 days or more at any time prior to the sale for slaughter, and if a slaughterer is to qualify for a payment (§ 472.654 (f) (5)) he must have owned the animals for 30 days or more prior to slaughter.

(c) *Full wool pelts.* The animals must never have been sheared or, if sheared, must have had a growth of at least 1½ inches of wool at the time of sale to the slaughterer for slaughter or, in the case of an application by a slaughterer, at the time of slaughter. Animals described in the preceding sentence will be referred to in this subpart as having full wool pelts (§ 472.673).

(d) *Purchased for slaughter.* The slaughterer must have purchased the animals for slaughter.

(e) *Sold or slaughtered in 1955 marketing year.* The animals must have been sold within the 1955 marketing year for slaughter (as defined in § 472.673), or, in the case of an application by a slaughterer, must have been slaughtered within that marketing year.

(f) *Various marketing situations.* In addition to the general eligibility requirements hereinbefore enumerated, the following provisions contain special requirements applicable in various marketing situations:

(1) *Sale by producer directly to slaughterer.* In case the producer sells the lambs and yearlings directly to a slaughterer for slaughter, the slaughterer (i) must, either himself or through a properly authorized agent, certify that the lambs or yearlings were never shorn or that they were shorn at some time prior to his purchase; (ii) must not make application for payment with respect to the slaughter of these animals pursuant to this subpart or for an incentive payment with respect to the sale of wool shorn from these animals under the 1955 Incentive Payment Program for Shorn Wool; (iii) must not issue a certification in accordance with § 472.671 (b) to any person other than the producer, which may be a basis for application for payment under this subpart. To indicate compliance with these and other provisions of the program, the slaughterer shall furnish to the producer a certification in accordance with § 472.671 (b). As to the contents of the sales document (defined in § 472.673) issued by the slaughterer, see § 472.659 (a).

(2) *Sale through registered commission firm or to registered dealer*—(i) *Sale by one owner.* In case the producer or other owner sells the animals through a commission firm, registered under the Packers and Stockyards Act, to a slaughterer for slaughter, or the producer or other owner sells the animals to a dealer who is so registered, and the dealer sells them to a slaughterer for slaughter, the commission firm or the dealer, as the case may be, (*a*) must obtain from the slaughterer a letter of authorization, as prescribed in § 472.671 (d), which will authorize the issuance of certifications in behalf of the slaughterer as to the matters stated in that letter; and (*b*) must issue a certification, as prescribed in § 472.671 (c), pursuant to that letter of authorization. As to the contents of the sales document issued by the commission, firm or dealer to the producer, see § 472.659 (b). If more than one such commission firm or dealer are involved in the marketing of the animals, the commission firm or dealer who did not sell directly to the slaughterer will issue a certification on the basis of a certification by another commission firm or dealer, as prescribed in § 472.671 (c) (2) (iv).

(ii) *Sale by two or more owners.* In case two or more producers or other owners sell their lambs or yearlings to a dealer, registered under the Packers and Stockyards Act, and the dealer sells the animals to one or more slaughterers, and thereafter issues certifications to those previous owners, the total number of head covered by the certifications to all the owners shall not exceed the total number of head sold to the slaughterer or slaughterers. Each certification to such an owner shall state the number of head of animals which he sold and specify a slaughterer or slaughterers as purchasers of these animals. For instance, if a dealer purchased 300 animals from owner A, 200 from owner B, and 100 from owner C, commingled these animals, and sold 50 to slaughterer X, 75 to slaughterer Y, and 475 to slaughterer Z, he may indicate in his certification to owner A that A's 300 animals were all sold to slaughterer Z; or that 50 were sold to slaughterer X, 75 to slaughterer Y, and 175 to slaughterer Z; or he may apportion the sale of the 300 animals to the slaughterers in any other way. If two or more registered commission firms or dealers are involved in the marketing of the animals, the commission firm or dealer who did not sell directly to the slaughterer will issue a certification on the basis of a certification by another commission firm or dealer, as prescribed in § 472.671 (c) (2) (iv).

(3) *Sale by producer to or through other person.* In case the producer sells the animals to or through a person other than those specified in subparagraphs (1) and (2) of this paragraph, and such person sells them in behalf of the producer or on his own behalf to a slaughterer for slaughter, such person must obtain from the slaughterer a certification in accordance with § 472.671 (b). The contents of the sales documents issued by the slaughterer to such other person shall be as in the case of a direct sale by a producer to a slaughterer, see § 472.659 (a).

(4) *Sale by slaughterer after issuing certification.* If, after a certification has been issued by or on behalf of a slaughterer, he sells the animals covered by such certification instead of slaughtering them, he shall reimburse CCC for any payment which CCC may make to a producer on the basis of such certification. In addition, the slaughterer shall notify the purchaser, by a statement on the bill of sale or other writing, (i) that the purchaser will not be entitled to a payment on the sale of such animals or on the sale of the wool shorn from such animals, unless such sale or shearing occurs at least 12 months after the date of the sale by the slaughterer to such

purchaser, and (ii) that the purchaser shall in turn similarly notify his purchaser, and the latter and each subsequent purchaser in succession shall notify his purchaser, to the same effect. Any such notification shall contain the name of the slaughterer and the date on which he sold the animals. If the purchaser from the slaughterer or a subsequent purchaser applied for and obtained a payment contrary to such notification, CCC may recover the payment from the slaughterer or from the purchaser or from both. If a notification required by this paragraph was not made CCC may recover the payment from the slaughterer or from the person who failed to give the proper notification or from both.

(5) *Slaughterer.* If the application is made by a slaughterer who fed the animals prior to slaughter, the applicant (i) must not have issued to any person a certification described in § 472.671 (b) and must make certain that no commisson firm or dealer issues a certification in his behalf as described in § 472.671 (c); and (ii) must have no knowledge, information, or belief that any person has been given a certification as described in § 472.671 (b) or (c). As to supporting these applications by scale tickets, see § 472.659 (e).

§ 472.655 *Sales involving more than one commission firm, dealer, or other person.* Irrespective of how many commission firms, dealers, or other persons participate in the marketing process between the producer and the slaughterer, the producer may apply for a payment by submitting a properly executed application (§ 472.658) and proper sales documents, including certifications (§ 472.659), which have been properly transferred to him (§§ 472.660, 472.661) where such transfer is appropriate.

§ 472.656 *Sales in good faith.* Payments provided for under this program shall be made on the basis of sales executed in good faith, and no payment shall be made on that part of any sale which has been cancelled or on the basis of sales at weights increased in bad faith for the purpose of obtaining higher payments under this program. Application for payment on the basis of a sale in bad faith may also subject the parties involved to civil and criminal liability.

§ 472.657 *Computation of payment.* In order to determine the amount of the payment due to an applicant, the rate of payment, computed pursuant to § 472.652, will be applied to the liveweight of the lambs and yearlings sold for slaughter (as defined in § 472.673), or slaughtered (§ 472.654 (f) (5)), during the 1955 marketing year.

§ 472.658 *Application for payment*—(a) *Filing.* The application for payment shall be filed by the person entitled thereto with the ASC county office serving the area where the headquarters of the applicant's farm, ranch, or feed lot, as the case may be, is located. Applications by producers located in the territories or possessions shall be filed with the Washington State ASC office, Spokane, Washington. All applications should be filed as soon as possible after the sale for slaughter or, in accordance with § 472.654 (f) (5), after slaughter, and must not be filed later than 30 days after the close of the 1955 marketing year, that is, not later than April 30, 1956. The ASC county committee may waive this 30-day limitation on applications filed before July 31, 1956, if delayed filing is due to causes beyond the control of the applicant or other good causes.

(b) *Form.* The application for payment shall be made on CCC Wool Form 47, "Application for Payment—Lambs and Yearlings (Pulled Wool)." Copies of this form will be available in the ASC county offices. The application will be filed in the original only. It shall be supported by the original sales document, including certifications, as set forth in paragraphs (a) through (c) of § 472.659 or, in the case of application by a slaughterer, by the substitute document as set forth in paragraph (e) of § 472.659, and such other evidence as may show compliance with the program. If the original sales document has been lost or destroyed, the applicant may submit a copy certified by the person who issued the original, and such certified copy shall be treated like an original for the purposes mentioned in this paragraph. If the applicant does not wish the original sales document to remain with the ASC county office, he may submit photostats or similarly reproduced or carbon copies of the original documents. However, he must show the original documents to the ASC county office where the statements on the copies will be confirmed by comparison with the originals. The original sales documents will be appropriately stamped or marked to indicate that they had been used in support of an application for payment under this program and will be returned to the applicant. He will be required to retain them in accordance with § 472.666. If it is the practice of the person or firm that prepares the sales document to furnish a carbon copy to the seller, the producer may submit that carbon copy in support of his application, provided the carbon copy bears an original signature of the person or firm that prepared the original sales document.

§ 472.659 *Contents of sales documents*—(a) *Sales by producer directly to slaughterer.* If the application is filed by a producer who sold his lambs or yearlings directly to a slaughterer, the sales document shall be prepared by the slaughterer and shall contain the following information and certification: (1) Name and address of seller; (2) date of sale; (3) number of lambs and yearlings sold for slaughter; (4) liveweight of lambs and yearlings sold for slaughter; (5) certification by the slaughterer in accordance with § 472.671 (b); and (6) name and address of the slaughterer with his signature, or that of his agent.

(b) *Sales by producer to slaughterer through registered commission firm or sales by producer to registered dealer.* (1) If the application is filed by a producer who sold his lambs or yearlings, through a commission firm registered under the Packers and Stockyards Act, to a slaughterer for slaughter, or by a producer who sold his lambs or yearlings to a dealer registered under that act, the dealer selling them to a slaughterer for slaughter, the sales document shall be prepared by the commission firm or the dealer, as the case may be, and shall contain the following information and certification: (i) Name and address of the seller; (ii) date of sale by the producer; (iii) number of lambs and yearlings sold by the producer; (iv) liveweight of lambs and yearlings sold by the producer; (v) name and address of slaughterer, if known when the sales document is issued; and (vi) a certification as set forth in § 472.671 (c) (2) (i), (ii), or (iii). When any provision in this subpart refers to a commission firm or dealer registered under the Packers and Stockyards Act, such provision shall apply only to those of his transactions which take place at a posted stockyard and therefore are subject to that act, and shall not apply to other transactions.

(2) If the application is filed by the producer who sold his lambs and yearlings, and they were ultimately sold to a slaughterer for slaughter, but more than one commission firm or dealer, registered under the Packers and Stockyards Act, participated in the marketing of these lambs and yearlings between the producer and the slaughterer, the sales document to be filed by the producer with his application shall be prepared by the commission firm through which, or by the dealer to whom, the producer sold his lambs and yearlings. The sales document shall contain the information and a certification as stated under subparagraph (1) of this paragraph, except that the certification shall be as prescribed in § 472.671 (c) (2) (iv).

(3) In lieu of preparing sales documents as prescribed in this paragraph, the commission firm or dealer may obtain sales documents from the slaughterer prepared in accordance with paragraph (a) of this section and furnish those documents to the producer (§ 472.660).

(c) *Sales to or through other person.* If a producer sold his lambs or yearlings to or through a person other than those specified in paragraphs (a) and (b) of this section, and such person sold them in behalf of the producer or on his own behalf to a slaughterer for slaughter, and wishes to transfer the sales document obtained from the slaughterer to the producer, in order to enable such producer to obtain a payment (§ 472.654 (f) (3)), the sales document shall be prepared by the slaughterer and shall contain information in accordance with paragraph (a) of this section.

(d) *When sales documents show that lambs and yearlings have been shorn.* The producer will be entitled to payment only if the lambs or yearlings sold by him had full wool pelts when they were purchased by the slaughterer for slaughter (§ 472.654 (c)), and he must certify to these facts in support of his application. If the slaughterer, commission firm, or dealer indicates in the certification pursuant to § 472.671 (b) or (c), that the lambs or yearlings had been shorn at some time prior to the purchase by the slaughterer, the producer

may certify as above stated only if he has obtained reliable information in writing showing that these animals were not shorn after he sold them. The producer need not submit this evidence in support of his application but shall retain the evidence in accordance with § 472.666.

(e) *Substitute for sales document in case of slaughterer.* If the application is made by a slaughterer who fed the animals for 30 days or more prior to slaughter (§ 472.654 (f) (5)), it shall be supported by a scale ticket instead of being supported by a sales document. The scale ticket shall indicate that it covers lambs and yearlings that moved to slaughter and must show the information normally appearing on scale tickets issued by stockyards (that is, date, number of head and classification, weight, scale ticket number, if any, place of weighing, and name of weigher).

(f) *Sale 12 months after slaughterer sold animals covered by his certification.* If a producer or slaughterer, upon purchasing the animals, received a notification in accordance with § 472.654 (f) (4) and the 12 months' requirement referred to therein has been complied with, he shall submit such notification with his application for payment.

§ 472.660 *Transfer of sales document to producer.* If any person, not registered under the Packers and Stockyards Act, sold lambs or yearlings directly to a slaughterer for slaughter; or so sold them through a commission firm registered under the Packers and Stockyards Act; or sold them to a registered dealer, the latter selling them to a slaughterer for slaughter; and such person desires to transfer to a qualified producer who previously owned these animals the appropriate sales document (as defined in § 472.673), in order to enable the producer to apply for a payment under this subpart, such person shall place the following statement on the sales document, sign and date such statement: "This sales document is being furnished to (name and address of producer) for the purpose of enabling him to make application to CCC for payment on lambs and yearlings under the National Wool Act of 1954." By signing this statement, such person shall be deemed to waive and disclaim any right to a payment under this program. The sales document so transferred shall contain the information listed in § 472.659, except that the information required therein to be listed with reference to a producer shall be given with reference to such person, and payment under this program will be made on the liveweight sold by such person. If a commission firm or dealer registered under the Packers and Stockyards Act wishes to use the procedure described in this section, he may do so.

§ 472.661 *Transfer of sales document to two or more producers*—(a) *Form.* If any person who is not registered under the Packers and Stockyards Act, or is so registered and by a transaction which does not take place at a posted stockyard and therefore is not subject to that act, acquires lambs or yearlings either as buyer or as seller's agent for sale, and thereafter as owner of the animals or as the seller's agent, as the case may be, (1) sells them directly to a slaughterer for slaughter or (2) sells them, by a transaction taking place at a posted stockyard and therefore subject to the Packers and Stockyards Act, either through a commission firm to a slaughterer for slaughter or to a dealer, the latter selling them to a slaughterer for slaughter; and such person desires to transfer to two or more producers who previously owned these animals the appropriate evidence of sale for slaughter (as defined in § 472.673), in order to enable the producers to apply for a payment under this subpart, such person may do so as follows: He shall prepare CCC Wool Form 48, "Certification for a Prior Owner to Collect Payment on Lambs and Yearlings Sold for Slaughter," listing those previous producer-owners, with a copy for each of them. In preparing this form, the seller shall indicate as to the animals covered thereby that all either had never been shorn or had been shorn, but shall not indicate on the same form that some animals had and some had not been shorn. When evidence of sale for slaughter is transferred to previous producer-owners through the use of CCC Wool Form 48, the total number of head and liveweight of animals as to which evidence of sale for slaughter is transferred shall be equal to the number of head and liveweight of animals sold for slaughter as indicated on the sales document.

(b) *Distribution of form.* The original of the completed CCC Wool Form 48, supported by the original sales document or by a carbon copy with an original signature thereon, as provided in § 472.658 (b), shall be filed with the ASC county office serving the county in which is located the farm or ranch headquarters of the first listed producer-owner. A copy of the completed form shall be furnished to each previous producer-owner listed in the form. When the completed form is distributed as set forth in this paragraph, the ASC county office will accept a copy of it, in lieu of a sales document, in support of an application filed by any previous producer-owner listed in the form.

§ 472.662 *Signature of applicant.* No payment will be made unless an application for payment is signed. The ASC county office will determine with respect to each person who signs an application for payment, or other document on the basis of which payment is made, in a representative or fiduciary capacity as agent, attorney-in-fact, officer, executor, etc., whether he was properly authorized to sign in such capacity.

§ 472.663 *Payment.* After the ASC county office has reviewed the application and documents attached thereto and approved it for payment in whole or in part and after the appropriate rate of payment has been announced by the Department of Agriculture, the ASC county office will make payment by sight draft to the order of the applicant. Payment of $3.00 or less to an applicant will not be made. If the ASC county office determines that for any reason the application for payment should be rejected in whole or in part, including the reason that it was not filed within the 30-day period in accordance with § 472.658 (a), the ASC county office shall notify the applicant by mail that his application has been rejected for a specified reason and shall retain a copy of such notice.

§ 472.664 *Deductions for promotion.* If the Department of Agriculture has approved deductions for an advertising and sales promotion program in accordance with section 708 of the National Wool Act of 1954, the rate of such deductions will be announced and deductions will be made by the ASC county office.

§ 472.665 *Appeals*—(a) *To ASC State Committee.* Within 15 days from the date of mailing of a notice that application has been rejected in whole or in part (see § 472.663), the applicant may appeal in writing to the ASC State Committee, stating the number of head and liveweight of the animals covered by the application, and such pertinent facts as he may deem proper, indicating in what respect the action of the ASC county office was erroneous. If the appeal is from the failure of the ASC county office to waive the 30-day limitation, the applicant shall also state the reason for his delay in filing the application.

(b) *To Washington office.* If the ASC State committee sustains the decision of the ASC county office, it shall notify the applicant by mail that his appeal has been denied and shall retain a copy of the notice. Within 15 days from the date of mailing such notice, the applicant may appeal in writing to the Director, Livestock and Dairy Division, Commodity Stabilization Service, United States Department of Agriculture, Washington 25, D. C. On this appeal, a determination by the Director as to a question of fact shall be deemed final and conclusive, unless it is found by a court of competent jurisdiction to have been fraudulent, arbitrary, capricious, or so grossly erroneous as necessarily to imply bad faith or is not supported by substantial evidence.

§ 472.666 *Records and inspection thereof.* The applicant as well as the slaughterer, the commission firm or dealer registered under the Packers and Stockyards Act, or any other person who makes a certification or furnishes evidence to an applicant for the purpose of enabling him to receive a payment under this program, shall maintain books, records, and accounts which will cover the marketing and slaughtering of lambs and yearlings on which an application for payment may be based, until April 1, 1959, and CCC shall at all times during regular business hours have access to the premises of the applicant and of the person who makes such a certification or furnishes evidence, in order to inspect, examine, and make copies of their books, records, accounts, and other written data.

§ 472.667 *Death, incompetency or other disability of the applicant.* (a) In case of death, incompetency, or disappearance of an applicant entitled to

payment, application for any payment hereunder may be made by any person who would be entitled to payment under the regulations contained in ACP–122, as amended, 7 CFR Part 1108, "Payments of Amounts Due Persons Who Have Died, Disappeared, or Have Been Declared Incompetent", except as follows: References in 7 CFR 1108.1 to section 8 of the Soil Conservation and Domestic Allotment Act, as amended, and to statutes authorizing parity payments, shall be deemed to refer to payments authorized pursuant to the National Wool Act of 1954. The reference in the last sentence of 7 CFR 1108.2 to the Agricultural Conservation Program Service shall be deemed to refer to Commodity Credit Corporation. The number and heading of Standard Form 1055 in the last sentence of 7 CFR 1108.7 shall be deemed to read, "Standard Form No. 1055—Revised, Claim Against the United States for Amounts Due in the Case of a Deceased Creditor."

(b) In case of infancy, bankruptcy, dissolution, or other disability, payments will be made to a representative only in accordance with specific instructions issued by CCC.

§ 472.668 *Set-off.* (a) If the applicant for payment is indebted to CCC or any other agency within the United States Department of Agriculture on any accrued obligation, or is indebted to any other agency of the United States and such indebtedness is listed on the county debt register, the ASC county office will set off such indebtedness against the payment due to the applicant. Such setoff shall not deprive the applicant of the right to contest the justness of the indebtedness involved, either by administrative appeal or by legal action.

(b) If the payment due to the applicant has been assigned by him, the ASC county office will approve the assignment subject to setting off such debts as exist at the time of approval by the ASC county office.

§ 472.669 *Assignments.* The producer may assign all payments which may be determined to be due him under this program for the 1955 marketing year by filing with the ASC county office the original and two copies of CCC Wool Form 49, "Assignment of Payment under National Wool Act of 1954," duly executed by both parties. Such assignment shall be null and void unless it is freely made and (a) is executed by the producer in the presence of at least two attesting witnesses, neither of whom shall be an employee or agent of, or by consanguinity or marriage related to, the assignee; or (b) is acknowledged by the producer before a notary public, member of the ASC county committee, the ASC county office manager, or a designated employee of such committee. This assignment may only be given as security for cash advanced or to be advanced by a financing agency on sheep or lambs. The producer shall not execute more than one assignment covering payments due him under this program for payments on lambs and yearlings. CCC will pay the assignee pursuant to an accepted assignment unless the ASC county office is furnished evidence of a mutual cancellation of the assignment by both parties thereto.

§ 472.670 *Instructions and interpretations.* CCC shall have the right to clarify any provision of this regulation by the issuance of instructions or interpretations.

§ 472.671 *Forms of certification and letter of authorization*—(a) *General.* The forms of certification set forth in this section shall be used to provide producers with evidence that their lambs or yearlings have been sold to a slaughterer for slaughter, and also as a basis for other certifications in accordance with the requirements of this subpart. A certification must be signed.

(b) *Certification by slaughterer or his agent*—(1) *General.* The forms set forth in this paragraph shall be used by slaughterers (§ 472.654 (f) (1) and (3)) or their agents. The slaughterer or his agent may use the form set forth in subparagraph (2) (i) or (ii) of this paragraph, that is, Certification Form 1 or 2, in his discretion. If he uses Certification Form 1, he shall insert in the blank spaces provided therefor (in ink, indelible pencil, or typewriter) figures showing the number of head and the weight of the animals which were never shorn and of the animals which were shorn at some time before purchase. If he uses Certification Form 2, he shall attach (in ink, indelible pencil, or by typewriter) the symbols stated in that certification to the appropriate items on the sales document in accordance with the meanings of the symbols as stated in the certification. The certification shall be inserted in the sales document by rubber stamp or otherwise, but shall not be attached thereto. If Certification Form 1 is to be used and it is not practicable to insert it in a sales document, an acceptable complete sales document, including the certification, may be prepared by including in Certification Form 1 the name of the seller and date of sale, and such other items of information as the slaughterer may wish to include.

(2) *Forms*—(i) Certification Form 1.

The undersigned, a commercial slaughterer or his authorized agent, hereby certifies with reference to the lambs or yearlings as set forth in the sales document of which this certification is a part, that he purchased such animals for slaughter; that ____ head thereof weighing ____ pounds were never shorn, and ____ head thereof weighing ____ pounds were shorn at some time prior to the purchase; that he has complied, to the best of his knowledge, information and belief, with all the requirements of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool); and that he will continue to comply therewith.

(Signature of slaughterer, or name of slaughterer and signature of agent)

(Date)

(ii) Certification Form 2.

The undersigned, a commercial slaughterer or his authorized agent, hereby certifies with reference to the lambs or yearlings as set forth in the sales document of which this certification is a part, that the following symbols on the sales document indicate as follows:

"sh–sl"—lambs and yearlings were purchased for slaughter and were shorn at some time prior to the purchase,

"un–sl"—lambs and yearlings were purchased for slaughter and were never shorn,

"other"—animals were purchased for feeding or other purposes; that he has complied, to the best of his knowledge, information, and belief, with all the requirements of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool); and that he will continue to comply therewith.

(Signature of slaughterer, or name of slaughterer and signature of agent)

(Date)

(3) *Effect.* By issuing the certifications hereinbefore described under subparagraph (2) of this paragraph that a commercial slaughterer or his authorized agent has complied and will continue to comply with all the requirements of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool), such slaughterer or agent certifies that he has not made and will not make application for payment with respect to the slaughter of the animals purchased for slaughter pursuant to the 1955 Payment Program for Lambs and Yearlings (Pulled Wool) or for an incentive payment with respect to the sale of the wool shorn from these animals under the 1955 Incentive Payment Program for Shorn Wool; that he has not issued and will not issue either form of certification to any person, other than the seller of the animals for slaughter, which might be used as a basis for an application for a payment under this pulled wool program; that if he should sell the animals instead of slaughtering them, § 472.654 (f) (4) would apply to him; and that he does not know of any facts which would bar a qualified producer, applying for payment on the animals covered by the slaughterer's certification, from receiving such payment.

(c) *Certification by commission firm or dealer registered under the Packers and Stockyards Act*—(1) *General.* This paragraph contains four certification forms. Three are set forth in subparagraph (2) (i), (ii) and (iii) of this paragraph, are headed Certification Forms 3, 4, and 5, respectively, and are based on an authorization issued by the slaughterer in accordance with paragraph (d) of this section; and one is set forth in subparagraph (2) (iv) of this paragraph, is headed Certification Form 6, and is based on a certification issued by a registered commission firm or dealer. Certification Forms 3 and 4 are to be used by commission firms or dealers when they know the name of the slaughterer at the time they issue the sales documents to the producer or other prior owner. Such form shall be stamped on the sales document issued by the commission firm or dealer to the producer, or otherwise made a part of such sales document, and shall not be attached to such sales document; except that, if the use of a stamp or otherwise making the certification a part of the sales document is impracticable, the commission

firm or dealer may use Certification Form 5. The provisions about filling out the blank spaces and the meaning of symbols, stated in paragraph (b) (1) of this section also apply here. Certification Form 5, set forth in subparagraph (2) (iii) of this paragraph, shall be used by a commission firm or dealer who has the authorization from a commercial slaughterer and learns the name of the slaughterer after such commission firm or dealer has issued a sales document to the producer or other prior owner, or when the use of a stamp or otherwise making the certification a part of the sales document is impractical, as previously stated. Certification Form 5 shall also be used in those cases where the commission firm or dealer issues its certification, based on the slaughterer's authorization, to another commission firm or dealer. Certification Form 6, set forth in subparagraph (2) (iv) of this paragraph, shall be used by a commission firm or dealer who does not have an authorization from the slaughterer and issues a certification to the producer or other prior owner, or issues a certification to another commission firm or dealer as a basis for the latter's certification. When Certification Form 5 or 6 is issued to a person other than a commission firm or dealer registered under the Packers and Stockyards Act, the last sentence in such form may be omitted. Certification Forms 5 and 6 may be attached to the sales documents.

(2) *Forms*—(i) *Certification Form 3.*

The undersigned, registered under the P. & S. Act, hereby certifies that he has the authorization from the commercial slaughterer prescribed in § 472.671 (d) of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool), and he hereby makes all the certifications which he is therein authorized to make with reference to the lambs and yearlings sold to the slaughterer, as set forth in the sales document of which this certification is a part, including the certification that they were purchased for slaughter. With respect to such animals he further certifies that ____ head thereof weighing ____ pounds were never shorn, and ____ head thereof weighing ____ pounds were shorn at some time prior to the purchase by the slaughterer. The undersigned does not know of any facts which would bar a qualified producer, applying for payment on the animals covered by this certification, from receiving such payment.

(Signature)

(Date)

(ii) *Certification Form 4.*

The undersigned, registered under the P. & S. Act, hereby certifies that he has the authorization from the commercial slaughterer prescribed in § 472.671 (d) of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool), and he hereby makes all the certifications which he is therein authorized to make with reference to the lambs and yearlings purchased by the slaughterer as set forth in the sales document of which this certification is a part; and that the following symbols on the sales document indicate as follows:

"sh–sl"—lambs and yearlings were purchased for slaughter and were shorn at some time prior to the purchase,

"un–sl"—lambs and yearlings were purchased for slaughter and were never shorn,

"other"—animals were purchased for feeding or other purposes.

The undersigned does not know of any facts which would bar a qualified producer, applying for payment on the animals covered by this certification, from receiving such payment.

(Signature)

(Date)

(iii) *Certification Form 5.*

(Date)

To: ---
(Name of Seller)

The undersigned, registered under the P. & S. Act, hereby certifies that he has the authorizations from the commercial slaughterers named below, prescribed in § 472.671 (d) of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool), and he hereby makes all the certifications which he is authorized therein to make with reference to the lambs and yearlings sold to these slaughterers, including the certification that they were purchased for slaughter. Listed below are also the number of head of animals that were never shorn and of head of animals that were shorn at some time prior to sale to these slaughterers.

Name and address of slaughterer	Number of head never shorn	Number of head shorn some time prior to sale to slaughterer

If the undersigned is a commission firm, it sold these animals for your account, and if a dealer, he purchased them from you, on ---, 195__. The undersigned does not know of any facts which would bar a qualified producer, applying for payment on the animals covered by this certification, from receiving such payment. If you are registered under the Packers and Stockyards Act, you are authorized to issue certifications in accordance with Certification Form 6, as set forth in § 472.671 (c) (2) (iv) of such program, on the basis of this certification.

(Signature)

(iv) *Certification Form 6.*

(Date)

To: ---
(Name of Seller)

Referring to the sale of your lambs and yearlings on ---, 195__, the undersigned, registered under the P. & S. Act, hereby certifies that he has certification(s) on Certification Form 3, 4, 5, or 6, as set forth in § 472.671 (c) (2) of the 1955 Payment Program for Lambs and Yearlings (Pulled Wool), and on the basis of such certification(s), the undersigned certifies with reference to the said lambs and yearlings, that those of them that are hereinafter listed were sold to the slaughterers named below, that those animals were purchased by the slaughterers for slaughter, and that they were never shorn or that they were shorn at some time prior to purchase by the slaughterers, as follows:

Name and address of slaughterer	Number of head never shorn	Number of head shorn some time prior to sale to slaughterer

The undersigned does not know of any facts which would bar a qualified producer, applying for payment on the animals covered by this certification, from receiving such payment. If you are registered under the Packers and Stockyards Act, you are authorized to issue certifications in accordance with Certification Form 6, as set forth in § 472.671 (c) (2) (iv) of such program, on the basis of this certification.

(Signature)

(d) *Slaughterer's letter of authorization to registered commission firm or dealer.* The form of letter of authorization set forth in this paragraph shall be used by a slaughterer who authorizes a registered commission firm or dealer to certify to the slaughterer's compliance with the provisions of this subpart. The form is as follows:

(Date)

To: ---
(Name of Commission Firm or Dealer)

You are authorized to issue on our behalf the certifications as to whether the lambs or yearlings, we purchased (will purchase) from you at ____ during the period ____ to ____, were purchased for slaughter and whether they were shorn or unshorn, in order to enable producers to obtain payments under the 1955 Payment Program for Lambs and Yearlings (Pulled Wool).

You are authorized to issue the certifications on the basis of the information shown on the scale ticket for each transaction as agreed to by our buyer and your salesman when completing the transaction. Our buyer will advise whether the scale ticket should show that the purchase is for slaughter or for other purposes, and whether the lambs and yearlings are to be classified as shorn or unshorn. Your issuing the certifications referred to shall have the same effect as if we were to issue the certifications ourselves.

You may also certify on our behalf with respect to those same lambs and yearlings that we have not made and will not make application for payment with respect to the slaughter of these animals pursuant to the 1955 Payment Program on Lambs and Yearlings (Pulled Wool) or for an incentive payment with respect to the sale of any wool shorn from these animals under the 1955 Incentive Payment Program for Shorn Wool; that, if after buying these animals we should sell them rather than slaughter, we would reimburse CCC for any payment which CCC might make to a producer on the basis of our certification and, in addition, we would notify the purchaser that neither he nor subsequent purchasers would be entitled to a payment under the shorn or pulled wool program within 12 months after our sale to such purchaser, and that if any such payment should be made by CCC we would reimburse CCC in accordance with the provision of § 472.654 (f) (4) of the pulled wool program; that we have not issued Certification Form 1 or 2, as set forth in § 472.671 (b) of such program, with reference to animals as to which you will issue a certification pursuant to this authorization; and that, when you issue Certification Form 3, 4, or 5, as set forth in § 472.671 (c) (2) (i), (ii), or (iii) on the basis of this letter, we do not know of any facts which would bar a qualified producer, applying for payment on the animals covered by your certification, from receiving such payment. This letter also authorizes other commission firms or dealers registered under the Packers and Stockyards Act to issue, on the basis of your certification, Certification Form 6 as set forth in § 472.671 (c) (2) (iv) of said program, with reference to lambs and yearlings covered by this letter.

(Commercial slaughterer)

(e) *Different forms.* The requirements of this section as to specific forms in support of an application for payment may be waived as to transactions which took place between April 1 and June 30, 1955, both dates inclusive. Applications on the basis of such transactions, which are documented by forms differing from those contained in this section, may be promptly filed with the ASC county offices which will notify the applicant whether such forms contain acceptable evidence of a valid claim or whether additional evidence will be required.

§ 472.672 *Other forms.* CCC Wool Form 27, "Application for Payment—Lambs and Yearlings (Pulled Wool);" CCC Wool Form 48, "Certification for a Prior Owner to Collect Payments on Lambs and Yearlings Sold for Slaughter;" CCC Wool Form 49, "Assignment of Payment under National Wool Act of 1954" and other numbered forms issued by the United States Department of Agriculture for use in connection with this program may be obtained from the ASC county offices. These forms may be reproduced, provided they retain the same language, format, and size, except that the printer's identification shall not be reproduced.

§ 472.673 *Definitions.* As used in this subpart, the terms enumerated in this section have the following meaning:

(a) "Financing agency" means any bank, trust company, or Federal lending agency. It also includes any other financing institution which customarily makes loans or advances to finance production of sheep, lambs, or wool.

(b) "Full wool pelts" means pelts of lambs and yearlings that have never been shorn or, if shorn, that have a growth of wool of 1½ inches or longer at the time of sale to a slaughterer for slaughter or, in cases under § 472.654 (f) (5), at the time of slaughter.

(c) "Lamb" means a young ovine animal, the first pair of permanent teeth of which has not developed to the extent of being in full wear.

(d) "Liveweight," for the purposes of this program, is the weight of lambs and yearlings which a producer sells and as to which he submits proof, as a part of his application for payment, that they were sold by himself or another person to a slaughterer for slaughter; except that in §§ 472.660 and 472.661 it shall mean the liveweight sold by the person who desires to transfer the sales document in accordance with those sections.

(e) "Producer" under this program includes not only a breeder, but also a feeder or pasturer, of lambs and yearlings. A producer may be an individual, partnership, association, business trust, corporation, or any organized unincorporated group of persons, and includes a State and any subdivision thereof.

(f) "1955 marketing year" is the period beginning April 1, 1955, and ending March 31, 1956, both dates inclusive.

(g) The "1955 Payment Program for Lambs and Yearlings (Pulled Wool)" means the regulations contained in this subpart and identifies the program operating pursuant thereto.

(h) "Sale for slaughter," "sold for slaughter," or "selling for slaughter" refers to a sale by a producer of lambs and yearlings as to which he submits proof, as a part of his application, that they were sold by himself or another person to a slaughterer for slaughter; except that these terms, when used in connection with sales described in §§ 472.660 and 472.661, shall refer to the sale by the person who transfers his sales document to one or more prior producer-owners pursuant to those sections.

(i) "Sales document" means the account of sale, bill of sale, invoice, and any other document evidencing the sale by the producer on which he bases his application for payment, except that in §§ 472.660 and 472.661 it shall mean the document by which the person desiring to transfer it to one or more prior producer-owners, sold the animals.

(j) "Slaughterer" means a commercial slaughterer, that is, a person who slaughters for sale as distinguished from a person who slaughters for home consumption.

(k) "Yearling" means a young ovine animal with not more than one pair of permanent teeth in full wear.

§ 472.674 *Violation of program.* Whoever issues a false certification or otherwise acts in violation of the provisions of this program, shall become liable to CCC for any payment which CCC may have made in reliance on such certification or as a result of such other action in violation of the program, apart from any other civil or criminal liability he may incur by such action.

NOTE: The reporting and record-keeping requirements contained herein have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 12th day of May 1955.

[SEAL] TRUE D. MORSE,
Under Secretary of Agriculture and President of Commodity Credit Corporation.

[F. R. Doc. 55-4003; Filed, May 16, 1955; 8:49 a. m.]

TITLE 7—AGRICULTURE

Chapter VII—Commodity Stabilization Service (Farm Marketing Quotas and Acreage Allotments), Department of Agriculture

PART 728—WHEAT

SUBPART—1956–57 MARKETING YEAR

Sec.
728.601 Basis and purpose.
728.602 National marketing quota for wheat for the 1956–57 marketing year.
728.603 1956 National acreage allotment for wheat.

AUTHORITY: §§ 728.601 to 728.603 issued under sec. 375, 52 Stat. 66, as amended; 7 U. S. C. 1375. Interpret or apply secs. 301, 333, 335, 52 Stat. 38, as amended; 7 U. S. C. 1301, 1333, 1335.

§ 728.601 *Basis and purpose.* (a) The regulations contained in §§ 728.601 to 728.603 are issued to proclaim the national marketing quota for wheat for the marketing year beginning July 1, 1956, and the 1956 national acreage allotment for wheat.

(b) Section 335 of the Agricultural Adjustment Act of 1938, as amended, provides that whenever in any calendar year the Secretary of Agriculture determines (1) that the total supply of wheat for the marketing year beginning in such calendar year will exceed the normal supply for such marketing year by more than 20 per centum, or (2) that the total supply of wheat for the marketing year ending in such calendar year is not less than the normal supply for such marketing year and that the average farm price for wheat for three consecutive months of such marketing year did not exceed 66 per centum of parity, the Secretary shall, not later than May 15 of such calendar year, proclaim such fact and a national marketing quota shall be in effect with respect to the marketing of wheat during the marketing year beginning July 1 of the next succeeding calendar year.

(c) Section 333 of the Act, as amended, provides that the national acreage allotment for any crop of wheat shall be that acreage which the Secretary determines will, on the basis of the national average yield of wheat, produce an amount thereof adequate, together with the estimated carry-over at the beginning of the marketing year for such crop and imports, to make available a supply for such marketing year equal to a normal year's domestic consumption and exports plus 30 per centum thereof, but such national acreage allotment cannot be less than 55 million acres.

(d) The findings and determinations by the Secretary contained in §§ 728.602 and 728.603 have been made on the basis of the latest available statistics of the Federal Government, and after due consideration of data, views, and recommendations received from wheat producers and others as provided in the notice (20 F. R. 655) given in accordance with the Administrative Procedure Act (5 U. S. C. 1003).

(e) Since the Agricultural Adjustment Act of 1938, as amended, requires the holding of a referendum of wheat producers who will be subject to the marketing quotas proclaimed on the 1956 crop not later than July 24, 1955, to determine whether such producers favor such marketing quotas and requires, insofar as practicable, the mailing of notices of farm acreage allotments to farm operators prior to the date of the referendum, it is hereby found that the proclamations contained herein shall become effective upon filing with the Director, Federal Register Division.

§ 728.602 *National marketing quota for wheat for the 1956–57 marketing year.* The total supply of wheat for the 1955–56 marketing year is determined to be 1,863 million bushels. The normal supply of wheat for such marketing year is determined to be 1,122 million bushels. This total supply exceeds the normal supply by more than 20 per centum. Therefore, a national marketing quota shall be in effect with respect to the marketing of wheat during the 1956–57 marketing year.

§ 728.603 *1956 National acreage allotment for wheat.* The estimated carry-

over of wheat for the marketing year beginning July 1, 1956, is 950 million bushels. A normal year's domestic consumption and exports of wheat plus 30 per centum thereof are 1,241 million bushels. Imports of wheat during the marketing year beginning July 1, 1956, are estimated to be 3 million bushels. The national average yield of wheat is 15.5 bushels per acre. The national acreage allotment computed for the 1956 crop is 18,580,645 acres. Since this amount is less than the minimum provided for by law, the national acreage allotment for the 1956 crop of wheat shall be 55 million acres.

Issued at Washington, D. C., this 13th day of May, 1955.

[SEAL] EZRA TAFT BENSON, *Secretary.*

[F. R. Doc. 55-4023; Filed, May 13, 1955; 1:04 p. m.]

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

[Avocado Order 6]

PART 969—AVOCADOS GROWN IN SOUTH FLORIDA

MATURITY REGULATION

§ 969.306 *Avocado Order 6*—(a) *Findings.* (1) Pursuant to the marketing agreement and Order No. 69 (7 CFR Part 969; 19 F. R. 3439) regulating the handling of avocados grown in South Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and upon the basis of the recommendations of the Avocado Administrative Committee, established under the aforesaid marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of avocados, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective not later than May 18, 1955. A reasonable determination as to the time of maturity of avocados must await the development of the crop thereof, and adequate information thereon was not available to the Avocado Administrative Committee until May 3, 1955; determinations as to the time of maturity of the varieties of avocados covered by this section were made at the meeting of said committee on May 3, 1955, after consideration of all available information relative to the time of bloom and growing conditions for such avocados, at which time the recommendations and supporting information for maturity regulation was submitted to the Department; such meeting was held to consider recommendation for such regulation after giving due notice thereof, and interested parties were afforded an opportunity to submit their views at this meeting; the provisions of this section are identical with the aforesaid recommendations of the committee and information concerning such provisions have been disseminated among the handlers of avocados; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time hereof.

(b) *Order.* (1) No handler shall handle any of the following varieties of the West Indian type of avocados prior to 12:01 a. m., e. s. t., June 13, 1955, namely: Fuchs, Pollocks, Simmonds, Hardee and Nadir.

(2) Insofar as varieties of the West Indian type of avocados not specified in subparagraph (1) of this paragraph are concerned, no handler shall handle any of such varieties except in accordance with the following terms and conditions:

(i) No such avocados shall be handled prior to 12:01 a. m., e. s. t., June 1, 1955;

(ii) To be eligible for handling during the period beginning at 12:01 a. m., e. s. t., June 1, 1955, and ending at 12:01 a. m., e. s. t., July 4, 1955, the individual fruit in each lot must weigh at least 16 ounces: *Provided,* That not to exceed 10 percent, by count, of the individual fruit in each lot may weigh less than 16 ounces but not less than 14 ounces, and not to exceed double such tolerance percentage shall be permitted for an individual container in a lot if the entire lot is within the tolerance;

(iii) To be eligible for handling during the period beginning at 12:01 a. m., e. s. t., July 4, 1955, and ending at 12:01 a. m., e. s. t., August 1, 1955, the individual fruit in each lot must weigh at least 14 ounces: *Provided,* That not to exceed 10 percent, by count, of the individual fruit in each lot may weigh less than 14 ounces but not less than 12 ounces, and not to exceed double such tolerance percentage shall be permitted for an individual container in a lot if the entire lot is within the tolerance; and

(iv) To be eligible for handling on or after 12:01 a. m., e. s. t., August 1, 1955, the individual fruit in each lot must weigh at least 12 ounces: *Provided,* That not to exceed 10 percent, by count, of the individual fruit in each lot may weigh less than 12 ounces but not less than 10 ounces, and not to exceed double such tolerance percentage shall be permitted for an individual container in a lot if the entire lot is within the tolerance.

(3) Insofar as any and all avocados not included in subparagraphs (1) and (2) of this paragraph are concerned, no handler shall handle any such avocados except in accordance with the following terms and conditions:

(i) No such avocados shall be handled prior to 12:01 a. m., e. s. t., September 5, 1955;

(ii) To be eligible for handling during the period beginning at 12:01 a. m., e. s. t., September 5, 1955, and ending at 12:01 a. m., e. s. t., October 3, 1955, the individual fruit in each lot must weigh at least 14 ounces: *Provided,* That not to exceed 10 percent, by count, of the individual fruit in each lot may weigh less than 14 ounces but not less than 12 ounces, and not to exceed double such tolerance percentage shall be permitted for an individual container in a lot if the entire lot is within the tolerance; and

(iii) To be eligible for handling on or after 12:01 a. m., e. s. t., October 3, 1955, the individual fruit in each lot must weigh at least 12 ounces: *Provided,* That not to exceed 10 percent, by count, of the individual fruit in each lot may weigh less than 12 ounces but not less than 10 ounces, and not to exceed double such tolerance percentage shall be permitted for an individual container in a lot if the entire lot is within the tolerance.

(4) Notwithstanding the provisions of subparagraphs (2) and (3) of this paragraph, any handler may, on and after the applicable beginning date specified in subdivision (i) of each of such subparagraphs, handle any lot of avocados without regard to the minimum weight requirements specified when (i) the exterior seed coat of the individual fruit is of a brown color characteristic of a mature avocado, or (ii) such avocados, when mature, normally change color to any shade of red or purple and any portion of the skin of the individual fruit has changed to the color normal for that fruit when mature.

(c) *Effective time.* The provisions of this section shall become effective at 12:01 a. m., e. s. t., May 18, 1955.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: May 12, 1955.

[SEAL] FLOYD F. HEDLUND, *Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-4002; Filed, May 16, 1955; 8:49 a. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket 6235]

PART 13—DIGEST OF CEASE AND DESIST ORDERS

NEW YORK COFFEE AND SUGAR EXCHANGE, INC., ET AL.

Subpart—*Combining or conspiring:* § 13.397 *To control or restrict*[1] *marketing or trading*[1] *methods, practices and conditions.* In connection with the operation of a coffee futures market, and in connection with the formation, adoption, entering into, trading in or the fulfillment of contracts for the purchase or

[1] Amended to read as set forth above.

sale of coffee in any form for future delivery in commerce, and on the part of respondent New York Coffee and Sugar Exchange, Inc., and respondent New York Coffee and Sugar Clearing Association, Inc., and said corporations' respective successors, etc., and on the part of respondent Gustavo Lobo, Jr., as president and member of the Board of Managers of respondent Exchange, respondent Leon Israel, Jr., as vice president and member of said Board, respondent William F. Prescott, as treasurer and member of said Board for the year 1954, and respondent G. W. Knauth, as secretary of respondent Exchange for the year 1954, and on the part of the respective successors in each of the aforesaid offices, of said individuals; directly or indirectly, jointly or severally, or through any corporate or other means or device, entering into, continuing, cooperating in, or carrying out any agreement, understanding, or planned common course of action, whether express or implied, between any two or more of said respondents, or between any one or more of said respondents and others not parties, to: (1) Restrict or limit trading in coffee for future delivery exclusively to the contracts open for trading on the respondent Exchange as of the date of August 1, 1954; or (2) restrict or limit trading on respondent Exchange in coffee for future delivery to any contract or contracts which have the effect of excluding as deliverable thereunder Arabica coffee, other than grades or types which are not suitable for futures trading because of inferior quality, insufficient supply, or lack of uniformity, from any country which, during the initial three of the four preceding calendar years, exported to the United States a yearly average of 750,000 or more bags (adjusted to a weight of 132.276 pounds per bag) of Arabica coffee; prohibited, subject to the proviso, however, that it shall be a defense to any charge that respondents have violated the order by the use in any contract or contracts of premiums or discounts, if respondents show (1) that such premiums and discounts, when adopted, were realistically related to values in the spot market, and (2) that such premiums and discounts were re-examined and readjusted not less frequently than every six months to relate realistically to values in the spot market and that all such readjusted discounts and premiums were incorporated in the contract or contracts thereupon opened for trading for new delivery months; and to the further provision that in the event of any modification or change, or discontinuance of, any futures, contract open for trading on the respondent Exchange, nothing in the order shall be interpreted as prohibiting in any way the continued trading in any such futures contract only until the end of any delivery month for which an open interest has already been taken on such Exchange at the time of any such modification, change, or discontinuance.

(Sec. 6, 38 Stat. 721; 15 U. S. C. 46. Interprets or applies sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45) [Cease and desist order, New York Coffee and Sugar Exchange, Inc., et al., New York, N. Y., Docket 6235, April 1, 1955.]

In the Matter of New York Coffee and Sugar Exchange, Inc., New York Coffee and Sugar Clearing Association, Inc., and Gustavo Lobo, Jr., President, Leon Israel, Jr., Vice President, William F. Prescott, Treasurer, as Officers, Members of the Board of Managers, and as Members of New York Coffee and Sugar Exchange, Inc., G. W. Knauth, as Secretary of New York Coffee and Sugar Exchange, Inc.; Jack R. Aron, Louis Blumberg, Alfred Boedtker, Adrian C. Israel, Chandler A. Mackey, Phillips R. Nelson, S. A. Schonbrunn, and Gustav Wedell, Individually as Members and Also as Representatives of Other Members of New York Coffee and Sugar Exchange, Inc.

This proceeding was heard by William L. Pack, hearing examiner, upon the complaint of the Commission which charged respondents with violation of the Federal Trade Commission Act through the use of contracts which unduly restricted and restrained trade on the respondent Exchange in coffee for future delivery, and upon a stipulation entered into by respondent Exchange, its four officers who were named as respondents, and respondent New York Coffee and Sugar Clearing Association, Inc., and counsel supporting the complaint.

Said stipulation provided, among other things, that respondents admitted all of the jurisdictional allegations in the complaint; that the filing of an answer to the complaint was waived, and that the complaint and stipulation should constitute the entire record in the proceeding; that the inclusion of findings of fact and conclusions of law in the decision disposing of the matter was waived, together with any further procedural steps before the hearing examiner and the Commission to which respondents might be entitled under the Federal Trade Commission Act or the rules of practice of the Commission; and that the order to be set forth might be entered in disposition of the proceeding.

Said stipulation further provided that such order should have the same force and effect as if made after a full hearing, presentation of evidence, and findings and conclusions thereon, respondents specifically waiving any and all right, power, and privilege to challenge or contest the validity of such order; that the order might be altered, modified, or set aside in the manner provided by the Federal Trade Commission Act for other orders of the Commission; and that the signing of the stipulation was for settlement purposes only and did not constitute an admission by any respondent that he or it had violated the law as alleged in the complaint.

Thereafter said hearing examiner made his initial decision in which he set forth the aforesaid matters; that he had considered such stipulation and the order therein contained and that the latter provided a proper basis for settlement and conclusion of the proceeding; and that, inasmuch as the order related to the forms of contract or contracts offered for trading on the respondent Exchange, the public interest was adequately safeguarded by an order against the respondents named in the cease and desist order contained in the stipulation and the dismissal of the complaint was appropriate as to the respondents named as individuals or as members of the Exchange or as representative of other members of the Exchange; accepted said stipulation and made the same a part of the record; made certain jurisdictional findings with respect to the respondents there named and found that the Commission had jurisdiction of the subject matter of the proceeding and of said respondents, and that the proceeding was in the interest of the public; and issued his order, including order to cease and desist, as to said respondents and order of dismissal as to certain respondents as individuals, etc., as therein set out.

No appeal having been filed from said initial decision of said hearing examiner, as provided for in Rule XXII of the Commission's rules of practice, nor any other action taken as thereby provided to prevent said initial decision becoming the decision of the Commission thirty days from service thereof upon the parties, said initial decision, including said order, accordingly, under the provisions of said Rule XXII, became the decision of the Commission on April 1, 1955.

Said order is as follows:

It is ordered, That respondents, New York Coffee and Sugar Exchange, Inc., a corporation, its successors, assigns, officers, directors, employees, agents and representatives; New York Coffee and Sugar Clearing Association, Inc., a corporation, its successors, assigns, officers, directors, employees, agents, and representatives; Gustavo Lobo, Jr., as President and member of the Board of Managers of respondent Exchange, his successors in each of said offices, Leon Israel, Jr., as Vice President and member of the Board of Managers of respondent Exchange, his successors in each of said offices; William F. Prescott, as Treasurer and member of the Board of Managers of respondent Exchange for the year 1954, and his successors in each of said offices; G. W. Knauth, as Secretary of respondent Exchange for the year 1954, and his successors in such office, directly or indirectly, jointly or severally, or through any corporate or other means or device, in connection with the operation of a coffee futures market, and in connection with the formation, adoption, entering into, trading in or the fulfillment of contracts for the purchase or sale of coffee in any form for future delivery in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from entering into, continuing, cooperating in or carrying out any agreement, understanding or planned common course of action, whether express or implied, between any two or more of said respondents, or between any one or more of said respondents and others not parties hereto, to do or perform any of the following acts or practices:

1. Restricting or limiting trading in coffee for future delivery exclusively to the contracts open for trading on the

respondent Exchange as of the date of August 1, 1954;

2. Restricting or limiting trading on respondent Exchange in coffee for future delivery to any contract or contracts which have the effect of excluding as deliverable thereunder Arabica coffee, other than grades or types which are not suitable for futures trading because of inferior quality, insufficient supply, or lack of uniformity, from any country which, during the initial three of the four preceding calendar years, exported to the United States a yearly average of 750,000 or more bags (adjusted to a weight of 132.276 pounds per bag) of Arabica coffee.

Provided, however, That it shall be a defense to any charge that respondents have violated this order by the use in any contract or contracts of premiums or discounts, if respondents show (1) that such premiums and discounts, when adopted, were realistically related to values in the spot market, and (2) that such premiums and discounts were re-examined and readjusted not less frequently than every six months to relate realistically to values in the spot market and that all such readjusted discounts and premiums were incorporated in the contract or contracts thereupon opened for trading for new delivery months.

Provided, further, however, In the event of any modification or change, or discontinuance of, any futures contract open for trading on the respondent Exchange, nothing in this order shall be interpreted as prohibiting in any way the continued trading in any such futures contract only until the end of any delivery month for which an open interest has already been taken on such Exchange at the time of any such modification, change or discontinuance.

It is further ordered, That the complaint herein be, and it is herewith, dismissed as to Gustavo Lobo, Jr., Leon Israel, Jr., William F. Prescott, G. W. Knauth, Jack R. Aron, Louis Blumberg, Alfred Boedtker, Adrian C. Israel, Chandler A. Mackey, Phillips R. Nelson, S. A. Schonbrunn and Gustav Wedell, as individuals, as members of the respondent Exchange and as representatives of other members of respondent Exchange but not as to Gustavo Lobo, Jr., Leon Israel, Jr., William F. Prescott and G. W. Knauth as officials of the respondent Exchange.

By "Decision of the Commission and Order to File Report of Compliance", Docket 6235, April 1, 1955, which announced and decreed fruition of said initial decision, report of compliance was required as follows:

It is ordered, That the respondents, New York Coffee and Sugar Exchange, Inc., New York Coffee and Sugar Clearing Association, Inc., and Gustavo Lobo, Jr., Leon Israel, Jr., William F. Prescott, and G. W. Knauth as officials of the respondent New York Coffee and Sugar Exchange, Inc., shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing setting forth in detail the manner and form in which they have complied with the order to cease and desist.

Issued: April 1, 1955.

By the Commission.

[SEAL] ROBERT M. PARRISH, *Secretary.*

[F. R. Doc. 55-3974; Filed, May 16, 1955; 8:45 a. m.]

[Docket 6286]

PART 13—DIGEST OF CEASE AND DESIST ORDERS

RECIPE FOODS, INC., ET AL.

Subpart—*Cutting off competitors' or others' access to customers or market:* § 13.585 *Removing or substituting products;* § 13.587 *Selling competitive product at reduced or below cost price.*[1] Subpart—*Selling below cost:* § 13.2180 *Selling below cost.* Subpart—*Subsidizing business:* § 13.2260 *Subsidizing business.* In connection with the offering for sale, sale, and distribution of beverage syrup in commerce, directly or indirectly: (1) Buying or exchanging or offering to buy or exchange the stocks of competitive beverage syrup stocked and handled by any wholesale grocers or retail chain store organizations either for cash or credit against purchases of beverage syrup from respondents; (2) guaranteeing or offering to guarantee to wholesale grocers or retail chain store organizations that if respondents' beverage syrup is stocked and handled exclusively in place of competitors' products, such wholesale grocers' or retail chain store organizations' profits during the year respondents' products are stocked exclusively will be equal to or will be more than or will double or will triple the total profits on all competitive beverage syrups stocked and sold in the previous year; or (3) selling or offering to sell beverage syrups which were purchased by respondents from any of its customers and which were manufactured by competitors of respondents at prices below the cost of such products to the respondents or at prices lower than the prices charged by respondents' competitors for the same products; prohibited.

(Sec. 6, 38 Stat. 721; 15 U. S. C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45) [Cease and desist order, Recipe Foods, Inc., et al., Baltimore, Md., Docket 6286, April 1, 1955.]

In the Matter of Recipe Foods, Inc., a Corporation, Theodore Marks, and Isadore S. Rosen, Individually and as Officers of Said Corporation

This proceeding was heard by Everett F. Haycraft, hearing examiner, upon the complaint of the Commission which charged respondents with the use of unfair methods of competition and unfair and deceptive acts and practices in commerce in violation of the provisions of the Federal Trade Commission Act, and upon a stipulation, which was signed by the parties, providing for the entry of a consent order disposing of all the issues in the proceeding and was submitted to said hearing examiner for his consideration in accordance with Rule V of the Commission's rules of practice.

Respondents, pursuant to said stipulation, admitted all the jurisdictional allegations set forth in the complaint and agreed that the record therein might be taken as if the Commission had made findings of jurisdictional facts in accordance with such allegations, and said stipulation further provided that all parties expressly waived the filing of answer, hearing before a hearing examiner or the Commission, the making of findings of fact or conclusions of law by the hearing examiner or the Commission, the filing of exceptions and oral argument before the Commission and all further and other procedure before the hearing examiner and the Commission to which respondents might be entitled under the Federal Trade Commission Act or the rules of practice of the Commission.

Respondents also agreed that the order to cease and desist issued in accordance with said stipulation should have the same force and effect as if made after a full hearing, presentation of evidence and findings and conclusions thereon and specifically waived any and all right, power, or privilege to challenge or contest the validity of the order entered, and it was further stipulated and agreed that said stipulation, together with the complaint, should constitute the entire record in the matter and that the complaint in the matter might be used in construing the terms of the said order to cease and desist, as thereinafter set forth, which might be altered, modified, or set aside in the manner provided by the statute for the orders of the Commission, and that the signing of said stipulation was for settlement purposes only and did not constitute an admission by respondents that they had violated the law as alleged in the complaint.

Thereafter the proceeding having come on for final consideration by said hearing examiner on said Stipulation for Consent Order and the parties having expressly waived the filing of an answer, said hearing examiner made his initial decision in which he set forth the aforesaid matters; and his conclusion that said stipulation provided for an appropriate disposition of the proceeding and his acceptance of said stipulation, which was ordered filed as a part of the record in the matter; and in which he made certain jurisdictional findings with respect to the respondents involved and found that the Commission had jurisdiction over the subject matter of the proceeding and of said respondents; that the complaint stated a cause of action against said respondents under the Federal Trade Commission Act; and that the proceeding was in the interest of the public; and in which he issued his order to cease and desist.

No appeal having been filed from said initial decision of said hearing examiner, as provided for in Rule XXII of the

[1] New.

Commission's rules of practice, nor any other action taken as thereby provided to prevent said initial decision becoming the decision of the Commission thirty days from service thereof upon the parties, said initial decision, including said order, accordingly, under the provisions of said Rule XXII, became the decision of the Commission on April 1, 1955.

Said order to cease and desist is as follows:

It is ordered, That respondents Recipe Foods, Inc., a corporation, Theodore Marks, an individual and president, and Isadore S. Rosen, an individual and vice president of corporate respondent Recipe Foods, Inc., and any officers, representatives, agents and employees of corporate respondent, directly or through any corporate or other device, in connection with the offering for sale, sale and distribution of beverage syrup in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from doing, directly or indirectly, any of the following acts or practices or using any of the following methods:

1. Buying or exchanging or offering to buy or exchange the stocks of competitive beverage syrup stocked and handled by any wholesale grocers or retail chain store organizations either for cash or credit against purchases of beverage syrup from respondents.

2. Guaranteeing or offering to guarantee to wholesale grocers or retail chain store organizations that if respondents' beverage syrup is stocked and handled exclusively in place of competitors' products, such wholesale grocers' or retail chain store organizations' profits during the year respondents' products are stocked exclusively will be equal to or will be more than or will double or will triple the total profits on all competitive beverage syrups stocked and sold in the previous year.

3. Selling or offering to sell beverage syrups which were purchased by respondents from any of its customers and which were manufactured by competitors of respondents at prices below the cost of such products to the respondents or at prices lower than the prices charged by respondents' competitors for the same products.

By "Decision of the Commission and Order to File Report of Compliance", Docket 6286, April 1, 1955, which announced and decreed fruition of said initial decision, report of compliance was required as follows:

It is ordered, That the respondents herein shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing setting forth in detail the manner and form in which they have complied with the order to cease and desist.

Issued: April 1, 1955.

By the Commission.

[SEAL] ROBERT M. PARRISH,
Secretary.

[F. R. Doc. 55-4005; Filed, May 16, 1955; 8:50 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 53799]

PART 4—VESSELS IN FOREIGN AND DOMESTIC TRADES

REQUIREMENTS FOR CLEARANCE; DISCONTINUANCE OF ISSUANCE OF PORT SANITARY STATEMENTS

The foreign quarantine regulations of the Public Health Service, Department of Health, Education, and Welfare, have recently been amended to discontinue authority for issuance of port sanitary statements. Section 4.61 (e) of the customs regulations, providing for the issuance of such statements on Public Health Service Form 1964 in certain instances by collectors of customs, is therefore deleted, together with the parenthetical matter at the end thereof.

(R. S. 161, sec. 2, 23 Stat. 118, as amended, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 1624, 46 U. S. C. 2)

[SEAL] D. B. STRUBINGER,
Acting Commissioner of Customs.

Approved: May 10, 1955.

H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 55-3998; Filed, May 16, 1955; 8:49 a. m.]

TITLE 26—INTERNAL REVENUE, 1954

Chapter I—Internal Revenue Service, Department of the Treasury

Subchapter E—Alcohol, Tobacco, and Other Excise Taxes

PART 197—DRAWBACK ON DISTILLED SPIRITS USED IN MANUFACTURING NONBEVERAGE PRODUCTS

On December 15, 1954, a notice of proposed rulemaking with respect to regulations designated as Part 197 of Title 26 (1954) of the Code of Federal Regulations was published in the FEDERAL REGISTER (19 F. R. 8557). The purposes of the proposal were to adopt Regulations 29, 1953 edition (26 CFR (1939) Part 197, 18 F. R. 8613), Drawback of Tax on Distilled Spirits Used in the Manufacture of Nonbeverage Products, as amended, and to amend such adopted regulations (a) to implement the provisions of the Internal Revenue Code of 1954, (b) to implement administrative decisions, and (c) to delete certain administrative instructions which are to be incorporated in internal management documents. After consideration of all relevant matter presented by interested parties, regarding the regulations proposed, the regulations so published are hereby adopted subject to the changes set forth below:

PARAGRAPH 1. The "Preamble" is amended as follows:

(A) The first paragraph is amended.

(B) A new third paragraph is added.

PAR. 2. Subpart B is amended as follows:

(A) By renumbering §§ 197.10 and 197.11 to read "197.5" and "197.6", respectively.

(B) By inserting a new § 197.7.

(C) By renumbering §§ 197.12 to 197.18, inclusive, to read "197.8" through "197.14", respectively.

(D) By inserting a new § 197.15.

(E) By renumbering §§ 197.19 to 197.23, inclusive, to read "197.16" through "197.20", respectively.

PAR. 3. Subpart G is amended as follows:

(A) By revising the headnote of § 197.112 to read: *"Distilled spirits received in tank cars or tank trucks."*

(B) By revising the third sentence of § 197.117.

PAR. 4. Subpart H is amended by revising paragraph (c) of § 197.130.

[SEAL] T. COLEMAN ANDREWS,
Commissioner of Internal Revenue.

Approved: May 11, 1955.

M. B. FOLSOM,
Acting Secretary of the Treasury.

Preamble. 1. The regulations in this part shall supersede Regulations 29, 1953 edition (26 CFR Part 197, 18 F. R. 8613).

2. These regulations shall not affect any act done or any liability or right accruing or accrued, or any suit or proceeding had or commenced, before the effective date of these regulations.

3. The regulations in this part shall be effective on the first day of the first month which begins not less than 30 days after the date of publication in the FEDERAL REGISTER.

Subpart A—Scope of Regulations

Sec.
197.1 Drawback of tax on spirits used in nonbeverage products.
197.2 Forms prescribed.

Subpart B—Definitions

197.5 Meaning of terms.
197.6 Assistant regional commissioner.
197.7 Commissioner.
197.8 Director, Alcohol and Tobacco Tax Division.
197.9 District director.
197.10 Domestic distilled spirits and distilled spirits.
197.11 Filed.
197.12 Intermediate products.
197.13 I. R. C.
197.14 Nonbeverage products.
197.15 Regional Commissioner.
197.16 Time distilled spirits are used.
197.17 Total annual withdrawals.
197.18 U. S. C.
197.19 Used.
197.20 Year.

Subpart C—Special Tax

197.25 Payment and rates of special tax.
197.26 Special tax for each place.
197.27 Date special tax due.
197.28 Filing of return and payment of special tax.

EXECUTION OF FORM 11

197.29 General.
197.30 Signature.
197.31 Verification of returns.

Subpart D—Special-Tax Stamps

197.40 Issuance of stamps.
197.41 Posting of stamps.
197.42 Corrections of errors on stamps.

CHANGE IN LOCATION

Sec.
197.43 General.
197.44 Removal in same internal revenue district.
197.45 Removal to another internal revenue district.
197.46 Failure of registration.
197.47 Certificates in lieu of lost stamps.

CHANGE IN CONTROL

197.48 General.
197.49 Persons eligible.
197.50 Failure of registration.
197.51 Certificates in lieu of lost stamps.

CHANGE IN NAME OR STYLE

197.52 General.
197.53 Change in capital stock.
197.54 Sale of stock.

ADJUSTMENT OF SPECIAL TAX RATE

197.55 Change to higher rate.
197.56 Change to lower rate.
197.57 Redemption of stamp.

REDEMPTION OF SPECIAL TAX STAMP

197.58 General.
197.59 Period for redemption of special tax stamp.

Subpart E—Bonds and Consents of Sureties

197.65 General.
197.66 Corporate surety.
197.67 Powers of attorney.
197.68 Deposit of collateral.
197.69 Consents of surety.
197.70 Approval required.
197.71 Authority to approve.
197.72 Additional or strengthening bonds.
197.73 New or superseding bonds.
197.74 Account with drawback bond.

TERMINATION OF BONDS

197.75 General.
197.76 Application of surety for release from bond.
197.77 Extent of release of surety from liability under bond.
197.78 Action by assistant regional commissioner.
197.79 Notice of termination.
197.80 Release of collateral.

Subpart F—Formulas and Samples

197.95 Products requiring formulas.
197.96 Products not requiring formulas.
197.97 Statement of process.
197.98 Samples.

Subpart G—Claims for Drawback

197.105 Drawback.
197.106 Claims.
197.107 Bond, Form 1730.
197.108 Date of filing claim.
197.109 Information to be shown by the claim.

SUPPORTING DATA

197.110 General.
197.111 Identification of special taxpayment.
197.112 Distilled spirits received in tank car or tank trucks.
197.113 Distilled spirits received in containers.
197.114 Distilled spirits received in bottles.
197.115 Use of distilled spirits.
197.116 Distilled spirits account.
197.117 Account of distilled spirits recovered in the manufacture of products eligible for drawback.
197.118 Account of distilled spirits recovered in the manufacture of intermediate products.
197.119 Account of intermediate products.

ACTION ON CLAIMS

197.120 Action on quarterly claims.
197.121 Action on monthly claims.

Subpart H—Records

Sec.
197.130 Nature of records.
197.131 Exception.
197.132 Form of record.

AUTHORITY: §§ 197.1 to 197.132 issued under sec. 7805, 68A Stat. 917; 26 U. S. C. 7805. Interpret or apply secs. 5131–5134, 68A Stat. 622–624; 26 U. S. C. 5131–5134. Other statutory provisions interpreted or applied are cited to text in parentheses.

SUBPART A—SCOPE OF REGULATIONS

§ 197.1 *Drawback of tax on spirits used in nonbeverage products.* The regulations in this part relate to obtaining drawback of internal revenue tax on distilled spirits used in the manufacture of certain nonbeverage products. The regulations cover the allowance of drawback of internal revenue tax on domestic distilled spirits used in the manufacture or production of medicines, medicinal preparations, food products, flavors, or flavoring extracts, which are unfit for beverage purposes; the payment of special (occupational) taxes in order to be eligible to claim drawback; claims; formulas and samples; losses; and records and reports of distilled spirits received and used in the manufacture of nonbeverage products.

§ 197.2 *Forms prescribed.* The Director, Alcohol and Tobacco Tax Division, is authorized to prescribe all forms required by this part, including bonds and records. Information called for shall be furnished in accordance with the instructions on the forms or issued in respect thereto.

SUBPART B—DEFINITIONS

§ 197.5 *Meaning of terms.* As used in this part, unless the context otherwise requires, terms shall have the meaning ascribed in this subpart.

§ 197.6 *Assistant regional commissioner.* "Assistant regional commissioner" shall mean the assistant regional commissioner, Alcohol and Tobacco Tax, who is responsible to, and functions under the direction and supervision of the regional commissioner of internal revenue.

§ 197.7 *Commissioner.* "Commissioner" shall mean the Commissioner of Internal Revenue.

§ 197.8 *Director, Alcohol and Tobacco Tax Division.* "Director, Alcohol and Tobacco Tax Division" shall mean the Director, Alcohol and Tobacco Tax Division, Internal Revenue Service, Treasury Department, Washington, D. C.

§ 197.9 *District director.* "District director" shall mean a district director of internal revenue.

§ 197.10 *Domestic distilled spirits and distilled spirits.* "Domestic distilled spirits" and "distilled spirits" shall mean that substance known as ethyl alcohol produced at industrial alcohol plants operated under Part 182 of this subchapter, and those substances known as whisky, brandy, rum, or other spirits, produced at registered distilleries or fruit distilleries operated under Parts 220 and 221 of this subchapter.

§ 197.11 *Filed.* A claim for drawback shall be deemed to have been "filed" when it is delivered to the office of the proper assistant regional commissioner, and by that office received: *Provided,* That if the claim is delivered by United States mail after the prescribed 3 months period, the date of the United States postmark stamped on the cover in which the claim is mailed shall be deemed to be the date of delivery. This provision shall not apply unless the postmark is made by the United States Post Office and the postmark date falls within the prescribed time, and unless the claim is deposited in the mail in the United States in an envelope or other appropriate wrapper, postage prepaid, and properly addressed to the assistant regional commissioner with whom the claim is required to be filed. If the claim is sent by United States registered mail, the date of registration shall be deemed the postmark date.

(68A Stat. 895; 26 U. S. C. 7502)

§ 197.12 *Intermediate products.* "Intermediate products" shall mean products containing distilled spirits which are not subject to drawback until used in a nonbeverage product eligible for drawback.

§ 197.13 *I. R. C.* "I. R. C." shall mean the Internal Revenue Code of 1954.

§ 197.14 *Nonbeverage products.* "Nonbeverage products" shall mean medicines, medicinal preparations, food products, flavors, or flavoring extracts, in the manufacture or production of which distilled spirits are used under the provisions of sections 5131–5134, I. R. C., and this part, and which are unfit for use for beverage purposes.

§ 197.15 *Regional Commissioner.* "Regional Commissioner" shall mean the Regional Commissioner of Internal Revenue of each of the internal revenue regions.

§ 197.16 *Time distilled spirits are used.* The "time" at which distilled spirits shall be deemed to have been used is when the product contains the ingredients called for by an approved formula, or formulas prescribed by the United States Pharmacopoeia, the National Formulary, or the Homeopathic Pharmacopoeia of the United States, as the case may be.

§ 197.17 *Total annual withdrawals.* The term "total annual withdrawals" shall mean the total quantity of distilled spirits (proof gallons), which are used in the manufacture or production of nonbeverage products during a year.

§ 197.18 *U. S. C.* "U. S. C." shall mean the United States Code.

§ 197.19 *Used.* Distilled spirits shall be deemed to have been "used" in the manufacture of a product under this part, when such spirits are either consumed in such manufacture or are incorporated in the product: *Provided,* That spirits lost by causes such as spillage, leakage, breakage or theft, prior to or during the process of manufacture, shall not be deemed to be consumed in such manufacture.

§ 197.20 *Year.* "Year" shall mean the period which begins July 1 and ends on the following June 30.

SUBPART C—SPECIAL TAX

§ 197.25 *Payment and rates of special tax.* Each person who uses distilled spirits in the manufacture or production of medicines, medicinal preparations, food products, flavors, or flavoring extracts which are unfit for beverage purposes, in order to be eligible to claim the drawback on the distilled spirits so used, must pay special tax at the rate of $25 per annum for total annual withdrawals not exceeding 25 proof gallons of distilled spirits; $50 per annum for total annual withdrawals not exceeding 50 proof gallons; or $100 per annum for total annual withdrawals of more than 50 proof gallons. Where a claim is filed in the first quarter of a year, covering distilled spirits used during the last quarter of the preceding year, and special tax has not been paid for the preceding year, special tax for such preceding year must be paid in the appropriate amount prior to or at the time of filing the claim. Special tax, based upon estimated withdrawals, may be paid in advance of actual withdrawals. Adjustments of the special tax where improperly paid will be made in accordance with §§ 197.55 and 197.56. The manufacturer is not required to pay the special tax if he does not claim drawback on the distilled spirits used by him.

§ 197.26 *Special tax for each place.* A separate special tax must be paid for each place at which distilled spirits are used in the manufacture or production of nonbeverage products if a claim is filed for drawback of tax on distilled spirits so used at each such place.

§ 197.27 *Date special tax due.* The special tax must be paid prior to the filing of the first claim for drawback during any fiscal year commencing July 1 and ending with June 30 following. Notwithstanding the month of the fiscal year in which the claim is filed, the full annual special tax of $25, $50, or $100, as the case may be, must be paid.

§ 197.28 *Filing of return and payment of special tax.* Persons intending to file claims for drawback shall file returns on Form 11, with remittances, with the district director of internal revenue for the district in which the place of manufacture is located.

EXECUTION OF FORM 11

§ 197.29 *General.* Special-tax returns, Form 11, may be procured from any district director or collection officer and shall disclose, in the spaces provided, the following:

(a) The true name of the taxpayer, which may be followed by the words "trading as" and any trade name under which the business is conducted.

(b) The exact location of the place of business, as by name and number of building or street, and where these do not exist, by some particularization in addition to the post office address.

(c) The kind of business carried on.

(d) Except in the case of a corporation, the true names of all persons having a proprietary interest in the business. While it is not necessary that the names of all persons having a proprietory interest in the business appear on the special-tax stamp, the names must be disclosed on the return, Form 11.

§ 197.30 *Signature.* The return of an individual proprietor shall be signed by the proprietor; the return of a partnership shall be signed by a member of the firm; and the return of a corporation shall be signed by an officer thereof. In each case, the person signing the return shall designate his capacity, as "individual owner," "member of firm," or, in the case of corporation, the title of the officer. Receivers, trustees, assignees, executors, administrators, and other legal representatives who continue the business of a bankrupt, insolvent, deceased person, etc., will indicate the fiduciary capacity in which they act. Returns executed by persons as agents will not be accepted unless they file with the district director a power of attorney authorizing them so to act.

§ 197.31 *Verification of returns.* A return on Form 11 must be verified by a written declaration that it is made under the penalties of perjury.

(68A Stat. 749; 26 U. S. C. 6065)

SUBPART D—SPECIAL-TAX STAMPS

§ 197.40 *Issuance of stamps.* Upon receipt of a return on Form 11, properly executed, together with proper remittance, the district director of internal revenue will issue a special-tax stamp designated "Manufacturer of Nonbeverage Products." District directors and collection officers may not issue the special-tax stamp before the tax is fully paid. Such special-tax stamp may not be sold or otherwise transferred to another person.

§ 197.41 *Posting of stamps.* A special-tax payer shall conspicuously display his special-tax stamp in the place of business for which the special tax was paid. If such stamp is lost or accidentally destroyed, the taxpayer should immediately notify the district director of internal revenue from whom the stamp was purchased, who will issue to the taxpayer a "Certificate in Lieu of Lost or Destroyed Special Tax Stamp," which must be kept in the same manner as the stamp.

(68A Stat. 831; 26 U. S. C. 6806 (a))

§ 197.42 *Corrections of errors on stamps.* On receipt of a special-tax stamp, the taxpayer will examine it to insure that the name and address are correctly stated thereon. If an error has been made, the stamp should be returned to the district director of internal revenue, with a statement showing the nature of the error and setting forth the proper name or address. The district director of internal revenue, on receipt of such stamp and statement, will compare the data with that on Form 11, and if an error on the part of the district director of internal revenue has been made, he will make the necessary correction and return the stamp to the taxpayer. If the Form 11 agrees with the data on the stamp, the district director of internal revenue will require the taxpayer to file a new Form 11, designated "Amended Return," disclosing the proper name and address, and, on receipt of the amended Form 11, will amend his Record 10 accordingly, attach the amended Form 11 to the original Form 11, make the proper correction on the stamp, and return it to the taxpayer.

CHANGE IN LOCATION

§ 197.43 *General.* A special-tax payer who, during the fiscal year for which special tax was paid, removes his place of manufacture to a place other than that specified in his special-tax stamp, must register the change with the district director of internal revenue from whom the special-tax stamp was purchased, within 90 days after he moves into the new premises, by executing a new return on Form 11, designated as "Amended Return," setting forth the time when and the place to which such removal was made, and shall surrender the special-tax stamp to the district director of internal revenue for indorsement of the change in location.

(68A Stat. 624; 26 U. S. C. 5144)

§ 197.44 *Removal in same internal revenue district.* When a special-tax payer removes his place of manufacture to another address within the same internal revenue district, the district director will enter on his Record 10 the new address and the date of removal into the new premises, and will note the change on the face of the special-tax stamp, stating clearly thereon the new location, and will return the special-tax stamp to the taxpayer.

§ 197.45 *Removal to another internal revenue district.* When a taxpayer removes his place of manufacture to a location within an internal revenue district other than that in which the special-tax stamp was issued, the district director who issued the special-tax stamp will enter on his Record 10 the new address and date of removal into the new premises, stating clearly the new location where the business is to be carried on, and will transmit the stamp to the district director of the district to which the taxpayer removed. The district director of that district will make entry on his Record 10, as in the case of a new registrant, and note the taxpayer's new address and the district director's name, title, and district, and the date of removal on the special-tax stamp, which will be returned to the taxpayer.

§ 197.46 *Failure of registration.* A person who removes his place of manufacture and fails to register such removal with the district director, as required by § 197.43, must pay a new special tax for the new location if a claim for drawback is filed by him during the fiscal year for which the original special tax was paid.

§ 197.47 *Certificates in lieu of lost stamps.* The provisions of §§ 197.43–197.46 shall apply to certificates issued in lieu of lost or destroyed special-tax stamps.

CHANGE IN CONTROL

§ 197.48 *General.* Certain persons other than the special-tax payer may,

without paying additional special tax, be eligible to the same privileges granted by law to the taxpayer during the remainder of the fiscal year for which the special tax was paid. To secure such right, such person or persons must file with the district director from whom the special-tax stamp was purchased, within 90 days after the date on which the successor or successors assume control, a return on Form 11, showing the basis of the succession.

§ 197.49 *Persons eligible.* Under the conditions indicated in § 197.48, persons such as those listed below have the right of succession:

Death: The widow or child or executor, administrator, or other legal representative of the taxpayer.

Husband and wife: A husband or wife succeeding to the business of his or her spouse (living).

Insolvency: A receiver or trustee in bankruptcy, or an assignee for benefit of creditors.

Withdrawal from firm: The partner or partners remaining after death or withdrawal of a member.

§ 197.50 *Failure of registration.* A person so succeeding, who fails to register such succession with the district director, as required by § 197.48, must pay a new special tax if a claim for drawback is filed by him during the fiscal year for which the original special tax was paid.

§ 197.51 *Certificates in lieu of lost stamps.* The provisions of §§ 197.48–197.50 shall apply to certificates issued in lieu of lost or destroyed special-tax stamps.

CHANGE IN NAME OR STYLE

§ 197.52 *General.* A special-tax payer does not incur liability to additional special tax by reason of a mere change in the trade name or style under which such business is conducted, nor by reason of a change in management which involves no change in the proprietorship of the business.

§ 197.53 *Change in capital stock.* Additional special tax is not required by reason of a change of name or increase in the capital stock of a corporation if the laws of the State of incorporation provide for such changes without creating a new corporation.

§ 197.54 *Sale of stock.* No additional special tax is required by reason of the sale or transfer of all or a controlling interest in the capital stock of a corporation.

ADJUSTMENT OF SPECIAL TAX RATE

§ 197.55 *Change to higher rate.* A manufacturer of nonbeverage products who pays a special tax of $25 per annum and has filed or intends to file a claim or claims for drawback covering distilled spirits in excess of 25 proof gallons used during the year for which the special tax was paid, must pay special tax of $50 or $100, as the case may be, and obtain a stamp therefor. The manufacturer may thereupon submit the special-tax stamp of $25 to the district director of internal revenue to whom the special tax was paid with a claim on Form 843 for redemption. Similar procedure will govern in the case of a manufacturer of nonbeverage products who pays special tax of $50 and has filed or intends to file claim for drawback covering distilled spirits used in excess of 50 proof gallons.

(68A Stat. 830; 26 U. S. C. 6805)

§ 197.56 *Change to lower rate.* A manufacturer of nonbeverage products who pays special tax of $100 or $50 per annum, as the case may be, and, during the year for which the special tax was paid, files claim or claims for drawback covering the use of not more than 50 or 25 proof gallons of distilled spirits, as the case may be, may file a claim on Form 843 for redemption of the stamp in the amount of the difference between the special tax paid and the special tax due. The special-tax stamp shall be attached to the claim.

(68A Stat. 830; 26 U. S. C. 6805)

§ 197.57 *Redemption of stamp.* Redemption of the special tax stamp may be made if it is established that the taxpayer did not file a claim for drawback for the period covered by the special tax stamp. Where claim for drawback was filed, redemption of the special tax stamp may be made if it is established that no drawback was allowed or paid for the period covered by the stamp.

REDEMPTION OF SPECIAL TAX STAMP

§ 197.58 *General.* Claim for redemption of a special tax stamp shall be filed on Form 843 (original only) with the district director of internal revenue to whom the special tax was paid. The claim must set forth in detail and state each ground upon which it is made, and facts sufficient to apprise the assistant regional commissioner of the exact basis thereof. The special tax stamp shall be attached to the claim.

(68A Stat. 830; 26 U. S. C. 6805)

§ 197.59 *Period for redemption of special tax stamp.* No claim for redemption of the special tax stamp shall be allowed unless presented within three years next after the payment of such tax.

(68A Stat. 830; 26 U. S. C. 6805)

SUBPART E—BONDS AND CONSENTS OF SURETIES

§ 197.65 *General.* Every person required to file a bond or consent of surety under the provisions of this part shall prepare and execute it on the prescribed form, in triplicate, in accordance with the provisions in this part and the instructions printed on the form, and shall submit it to the assistant regional commissioner. The bonds required by the provisions in this part shall be given with corporate surety or collateral security. The surety may not have any interest, either direct or indirect, in the business of the principal on the bond.

§ 197.66 *Corporate surety.* Bonds may be given with corporate surety authorized by the Secretary of the Treasury to become surety on Federal bonds, subject to the limitations prescribed by the Secretary in Treasury Department Form 356, Commissioner of Accounts, Surety Bonds Branch, and subject to such amendatory circulars as may be issued from time to time. A bond executed by two or more corporate sureties shall be the joint and several liability of the principal and the sureties: *Provided*, That each corporate surety may limit its liability in terms upon the face of the bond in a definite, specified amount, which amount shall not exceed the limitations prescribed for such corporate surety by the Secretary, as set forth in Treasury Department Form 356. When the sureties so limit their liability, the aggregate of such limited liabilities must equal the required penal sum of the bond.

§ 197.67 *Powers of attorney.* Powers of attorney and other evidence of appointment of agents and officers to execute bonds on behalf of corporate sureties are required to be filed with, and passed upon by, the Commissioner of Accounts, Surety Bonds Branch, Treasury Department. Such powers and other evidence of appointment need not be filed with, or submitted to, assistant regional commissioners. Powers of attorney or other evidence of appointment of agents and officers to execute bonds on behalf of the principal, must be filed on Form 1534, in triplicate, with the assistant regional commissioner with whom the bond is filed.

§ 197.68 *Deposit of collateral.* Except as provided in this section, bonds or notes of the United States, or other obligations which are unconditionally guaranteed as to both interest and principal by the United States, may be pledged and deposited by principals as collateral security in lieu of corporate sureties. Assistant regional commissioners, on receiving such bonds or notes, or other obligations, pledged and deposited by principals as collateral security in lieu of surety, shall deposit such securities as required by Department Circular No. 154, revised (31 CFR Part 225). United States Savings, Defense Savings, and War Savings Bonds issued under the authority of section 22 of the Second Liberty Bond Act, as amended, and other bonds and notes of the United States, which are nontransferable or the hypothecation of which will not be recognized by the Treasury Department, may not be pledged and deposited as security in lieu of corporate sureties.

(61 Stat. 646; 6 U. S. C. 15)

§ 197.69 *Consents of surety.* Consents of surety to a change in the terms of a bond must be executed on Form 1533, in as many copies as are required of the bond which they affect, by the principal and all sureties with the same formality and proof of authority to execute as are required for the execution of bonds. Form 1533 will be used by obligors on collateral bonds as well as those on surety bonds. The Form 1533 must properly identify the bond affected thereby and state specifically and precisely what is covered by the extended terms thereof. The consent of the corporate surety may be executed by an agent or attorney in fact duly authorized so to do by power of attorney filed by the surety with the appropriate assistant regional commissioner, or the consent may be executed

by the home office officials of such corporate surety.

§ 197.70 *Approval required.* No person using distilled spirits in the manufacture of nonbeverage products may file monthly claim for drawback under the provisions of this part until bond on Form 1730 has been approved by the assistant regional commissioner.

§ 197.71 *Authority to approve.* Assistant regional commissioners are authorized to approve all bonds and consents of surety required by this part.

§ 197.72 *Additional or strengthening bonds.* In all cases where the penal sum of a bond on file and in effect is not sufficient, computed as prescribed by this part, the principal may give an additional or strengthening bond in a sufficient penal sum, provided the surety thereon is the same as on the bond already on file and in effect; otherwise a new bond covering the entire liability will be required. Such additional or strengthening bonds, being filed to increase the bond liability of the principal and the surety, shall not be construed in any sense to be substitute bonds, and the assistant regional commissioner will refuse to approve an additional or strengthening bond where any notation is made thereon which may be construed as a release of any former bond or as limiting the amount of either bond to less than its full penal sum. Additional or strengthening bonds must show the current date of execution and the effective date in the blank spaces provided therefor. Such bonds must have marked thereon, by the obligors at the time of execution, "Additional Bond," or "Strengthening Bond," as the case may be.

§ 197.73 *New or superseding bonds.* The principal on any bond filed pursuant to this part may, at any time, substitute a new bond therefor. Executors, administrators, assignees, receivers, trustees, or other persons acting in a fiduciary capacity, continuing or liquidating the business of the principal, must execute and file a new bond or obtain the consent of the surety or sureties on the existing bond or bonds. When, in the opinion of the assistant regional commissioner, the interests of the Government demand it or in any case where the security of the bond becomes impaired in whole or in part for any reason whatever, the principal will be required to give a new bond. A new bond shall be required immediately in case of the insolvency of the surety. Where a bond is found to be not acceptable or for any reason becomes invalid or of no effect, the principal shall be required to file immediately a new and satisfactory bond. Superseding bonds must show the current date of execution and the date they are to be effective, and each such bond shall have marked thereon, by the obligors at the time of execution, "Superseding Bond." Where a new bond is submitted by the principal to supersede a bond or bonds then in effect, and such superseding bond has been approved, the superseded bond shall be released as to transactions occurring wholly subsequent to the effective date of the superseding bond and notice of termination of the superseded bond may be issued as provided in § 197.78.

§ 197.74 *Account with drawback bond.* The assistant regional commissioner will keep an account with each bond governing the allowance of drawback on a monthly basis. The principal will be charged with the amount of drawback allowed on each monthly claim. Credit will be given on the account with the bond in the amount equal to the drawback found by audit and investigation to be allowable, under the provisions of this part.

Termination of Bonds

§ 197.75 *General.* Continuing bonds on Form 1730 will be terminated by the assistant regional commissioner as to liability on drawback allowed after a specified future date (a) pursuant to a notice by the surety as provided in § 197.76, (b) following approval of a superseding bond, as provided in § 197.73, or (c) following notification by the principal of his intent to discontinue the filing of claims on a monthly basis: *Provided,* That the bond will not be terminated until all outstanding liability thereunder has been discharged. Upon termination, the assistant regional commissioner will mark the bond "canceled" followed by the date of cancellation, and will issue a notice of termination, Form 1490, or a notice of release, Form 1491, as provided in § 197.79.

§ 197.76 *Application of surety for release from bond.* A surety on any bond required by this part may at any time, in writing, notify the assistant regional commissioner in whose office the bond is on file, and the principal, that he desires to be relieved of liability under the bond at a date not less than 60 days after the date of the notification. One copy of the notice must be delivered to the principal and two copies shall be delivered to the assistant regional commissioner. If the notice is given by an agent of the surety it must be accompanied by a power of attorney authorizing the agent to give such notice, or by a verified statement that such power of attorney is on file with the Treasury Department. The surety must also file with the assistant regional commissioner an acknowledgment or other proof of service of such notice on the principal.

§ 197.77 *Extent of release of surety from liability under bond.* If the notice required by § 197.76 is not withdrawn thereafter in writing, the rights of the principal as supported by the said bond shall be terminated on the date named in the notice, and the surety will be relieved from liability for drawback allowed subsequent to the date named. Liability for drawback allowed prior to the date named in the surety's notice will continue until the claims for such drawback have been properly verified by the assistant regional commissioner according to law and this part. Where the principal files a valid superseding bond, the surety on the bond superseded will be relieved from liability for drawback allowed wholly subsequent to the effective date of the superseding bond.

§ 197.78 *Action by assistant regional commissioner.* When an application by the surety for release from bond is filed with the assistant regional commissioner, or when a superseding bond has been approved, or when the principal has discontinued filing claims on a monthly basis, the assistant regional commissioner will make a complete examination of records to determine whether there is any liability then due and payable, or chargeable, outstanding against the bond. If it is found that liabilities chargeable against the bond have not been paid or credited or otherwise settled, no further action will be taken until all such liabilities have been settled. If the assistant regional commissioner finds that the bond may be properly terminated, he will issue notice of termination in accordance with the provisions of § 197.79.

§ 197.79 *Notice of termination.* Upon determining that the bond on Form 1730 may be terminated, the assistant regional commissioner will execute a notice of termination, Form 1490, where a superseding bond has been approved, or a notice of release, Form 1491, where the principal has discontinued filing monthly claims, or where the surety has made application for release from bond as provided in § 197.76. The notice of termination or the notice of release shall be prepared in quadruplicate where there is but one surety, and in quintuplicate where there are two sureties. The assistant regional commissioner will forward the original of the notice to the Director, Alcohol and Tobacco Tax Division, together with a copy of the surety's application, if any, furnish one copy to each obligor, and retain one copy of the notice and the surety's application, if any, on file with the bond to which it relates.

§ 197.80 *Release of collateral.* The release of collateral pledged and deposited to support bonds required by this part will be in accordance with the provisions of Department Circular No. 154, revised (31 CFR Part 225), subject to the conditions governing issuance of notices on Forms 1490 and 1491 of the termination of such bonds. When the assistant regional commissioner determines that there is no outstanding liability against the bond, and has satisfied himself that the interests of the Government will not be jeopardized, the security may be released and returned to the principal.

(61 Stat. 646; 6 U. S. C. 15)

SUBPART F—FORMULAS AND SAMPLES

§ 197.95 *Products requiring formulas.* Manufacturers intending to file drawback claims are required to file quantitative formulas for all preparations except those covered by § 197.96. Such formulas should be sent direct to the Director, Alcohol and Tobacco Tax Division, Washington 25, D. C., on Form 1678, in quadruplicate, before or at the time of manufacture of the products. Upon receipt by the Director, Alcohol and Tobacco Tax Division, the formulas will be examined and if found to be medicines, medicinal preparations, food products, flavors, or flavoring extracts which are

unfit for beverage purposes they will be approved. If the formulas do not meet the requirements of the law for drawback products, they will be disapproved. No drawback will be allowed on distilled spirits used in a disapproved product, unless such product is later used in the manufacture of an approved nonbeverage product. The formulas should be serially numbered, commencing with number one and continuing thereafter in numerical sequence. Amended or revised formulas will be considered as new formulas and serially numbered accordingly. One copy of each formula will be retained by the Director, Alcohol and Tobacco Tax Division, one copy returned to the manufacturer, and the original and one copy will be sent to the assistant regional commissioner for filing. The formulas returned to manufacturers shall be filed in serial order by the manufacturer and made available for examination by internal revenue officers in the investigation of drawback claims. The copies sent to assistant regional commissioners shall likewise be filed in serial order, available for examination by drawback audit clerks and laboratory chemists. In the case of food products, such as preserved fruits, cakes, buns, soups, etc., it will be sufficient if the formulas therefor show the quantity of proof gallons of distilled spirits used in the production of a given quantity of finished product.

§ 197.96 *Products not requiring formulas.* Quantitative formulas need not be submitted if the products are medicinal preparations, tinctures, or fluid extracts produced under formulas prescribed by the United States Pharmacopoeia, The National Formulary, or the Homeopathic Pharmacopoeia of the United States, and such products are identified in the supporting data by name and followed by the letters "U. S. P.," "N. F.," or "H. P. U. S.," as the case may be.

§ 197.97 *Statement of process.* The assistant regional commissioner, at his discretion, may at any time require any person claiming drawback under the regulations in this part to file a statement of process in addition to that required by Form 1678 and such other data as he may deem necessary for consideration of such person's claim for drawback. When such additional data are required, the statement of process should be submitted with copies of the commercial labels used on the finished products.

§ 197.98 *Samples.* The Director, Alcohol and Tobacco Tax Division, or assistant regional commissioner, at his discretion, may also at any time require any person claiming drawback under the regulations in this part to submit a sample of each nonbeverage product for examination. Where the applicant proposes to use a mixture of oil or other ingredients, the composition of which is unknown to him, a 1-ounce sample should be submitted with the sample of finished product when so required by the Director, Alcohol and Tobacco Tax Division, or assistant regional commissioner, as the case may be.

SUBPART G—CLAIMS FOR DRAWBACK

§ 197.105 *Drawback.* Drawback at the rate specified by law on each proof gallon of distilled spirits used in the manufacture of medicines, medicinal preparations, food products, flavors, or flavoring extracts which are unfit for beverage purposes will be allowed to any person who has become eligible for such drawback and upon the filing of a claim therefor as provided in this subpart.

§ 197.106 *Claims.* The claim for drawback shall be filed on Form 843 (original only) with the assistant regional commissioner, for the region in which the place of manufacture is located, and shall pertain only to distilled spirits used in the manufacture or production of nonbeverage products during any one quarter of the year, and only one claim may be filed for each quarter: *Provided,* That where the manufacturer has notified the assistant regional commissioner, in writing, of his intention to file claims on a monthly basis, in lieu of a quarterly basis, and has filed a bond in compliance with the provisions of § 197.107, claims may be filed monthly in lieu of quarterly: *Provided further,* That any such election for the filing of monthly claims may be revoked upon filing of notice thereof, in writing, with the assistant regional commissioner.

§ 197.107 *Bond, Form 1730.* Every person desiring to file claims for drawback on a monthly basis shall, upon filing his notice of such intention as provided in § 197.106, execute a bond on Form 1730, in triplicate, in conformity with the provisions of Subpart E of this part, and file the same with the assistant regional commissioner. The penal sum of the bond must be sufficient to cover the amount of drawback which will, during any quarterly period, constitute a charge against the bond: *Provided,* That the penal sum of any bond shall not exceed $200,000 nor be less than $1,000. The bond shall be a continuing one, and the liability thereof subject to increase as successive monthly claims are allowed thereunder and to decrease as the verifications of such monthly claims are made. When the limit of liability under a bond given in less than the maximum penal sum has been reached, no further drawback on monthly claims will be allowed unless prior charges against the bond have been decreased, or a new, or additional, bond in sufficient penal sum is furnished.

§ 197.108 *Date of filing claim.* Quarterly claims for drawback must be filed with the assistant regional commissioner within the three months next succeeding the quarter in which the distilled spirits covered by the claim were used in the manufacture of nonbeverage products. Monthly claims for drawback may be filed at any time after the end of the month in which the distilled spirits covered by the claim were used in the manufacture of nonbeverage products, but must be filed not later than the close of the third month succeeding the quarter in which such spirits were used.

§ 197.109 *Information to be shown by the claim.* The claim must set forth the following:

(a) That the special tax has been paid.

(b) That the tax on the distilled spirits on which drawback is claimed has been paid and that such spirits were produced in a domestic registered distillery or an industrial alcohol plant.

(c) That the distilled spirits on which the drawback is claimed were used in the manufacture or production of nonbeverage products.

(d) That the nonbeverage products were manufactured in compliance with (1) quantitative formulas filed with the Director, Alcohol and Tobacco Tax Division, on Form 1678 prior to or at the time of manufacture, or (2) formulas prescribed by the United States Pharmacopoeia, the National Formulary, or the Homeopathic Pharmacopoeia of the United States.

(e) That the data submitted in support of the claim are correct.

SUPPORTING DATA

§ 197.110 *General.* Each claim will be accompanied by statements of supporting data as provided by §§ 197.111–197.119.

§ 197.111 *Identification of special taxpayment.* Each claim will be accompanied by a statement showing, with respect to payment of special tax: (a) Serial number of special tax stamp, (b) denomination, (c) fiscal year for which issued, (d) date of issuance, and (e) internal revenue district where issued.

§ 197.112 *Distilled spirits received in tank cars or tank trucks.* Each claim covering distilled spirits received in tank cars or tank trucks will be accompanied by a statement showing: the date of receipt; the name and address of the vendor, whether taxpayment was evidenced by a certificate of taxpayment, Form 1595, or a wholesale liquor dealer's stamp; the serial number of the certificate of taxpayment (Form 1595), or the wholesale liquor dealer's stamp; the date of issuance of the certificate or wholesale liquor dealer's stamp; the name of the producer; and the kind, quantity, and proof of the spirits. (When a tank car or tank truck is emptied, the certificate of taxpayment, Form 1595, or the wholesale liquor dealer's stamp, as the case may be, affixed thereto shall be scalped by cutting out all of that portion of the certificate or stamp within the borders and the cut-out portion of the certificate or stamp shall be immediately forwarded to the assistant regional commissioner. If the tank car or tank truck is received without the certificate or stamp attached thereto, the vendee shall note such fact on the bill of lading, if any, or on Form 1440 or 1520, as the case may be, and immediately notify the assistant regional commissioner who will cause such inquiry to be made respecting the shipment and receipt of the conveyance as he may deem appropriate.)

§ 197.113 *Distilled spirits received in containers.* Each claim covering distilled spirits received in containers, such as barrels, drums, cans, or cases, bearing

internal revenue stamps will be accompanied by a statement showing: the date of receipt; the name and address of the vendor; the serial number of the stamp affixed to the container; the date of issuance appearing on the stamp; the serial number, if any, of the container; the name of the producer; and the kind, quantity, and proof of the spirits. (When the package is emptied, the stamp shall be scalped and attached to the next claim filed for drawback on the spirits which were in such package.)

§ 197.114 *Distilled spirits received in bottles.* Each claim covering distilled spirits received in bottles will be accompanied by a statement showing: the date of receipt; the name and address of the vendor; the serial number of the strip stamp affixed to the bottle; the name of the bottler; and the kind, quantity, and proof of the spirits.

§ 197.115 *Use of distilled spirits.* Each claim covering the use of distilled spirits in the manufacture of nonbeverage products will be accompanied by a statement showing the name, description, and formula number, if any, of each nonbeverage product in the manufacture of which distilled spirits were used, the alcoholic content by volume of each such product, the number of proof gallons and kind of distilled spirits used in manufacture thereof, and the quantity produced.

§ 197.116 *Distilled spirits account.* Each claim will be accompanied by a statement showing in proof gallons the quantity of all distilled spirits on hand at the beginning of the period, quantity in process beginning of the period, quantity received during the period, quantity used during the period in the manufacture of nonbeverage products subject to drawback, quantity used in the manufacture of intermediate products, quantity otherwise used not subject to drawback, quantity in process at the end of the period, and the quantity remaining on hand at the end of the period. Distilled spirits in process will include distilled spirits represented in unfinished nonbeverage products, mixtures, menstruums, etc. Any discrepancy between the amount of distilled spirits on hand at the end of the period as disclosed by actual inventory and the amount shown by the manufacturer's records must be reported in the summary with an explanation of the cause thereof.

§ 197.117 *Account of distilled spirits recovered in the manufacture of products eligible for drawback.* Each claim will be accompanied by a summary statement showing in proof gallons the quantity of all recovered distilled spirits on hand at the beginning of the period, quantity in process beginning of the period, quantity recovered during the period, quantity used not subject to drawback, quantity in process at the end of the period, and the quantity remaining on hand at the end of the period. Any discrepancy between the amount of recovered distilled spirits on hand at the end of the period as disclosed by actual inventory and the amount shown by the manufacturer's records must be reported in the summary with an explanation of the cause thereof. Distilled spirits recovered from dregs or marc of percolation or extraction of products eligible for drawback may be reused in the manufacture of medicines or flavoring extracts of the kind in which originally used, e. g., distilled spirits recovered from dregs or marc of percolation or extraction in the manufacture of one medicine may be reused in the manufacture of another medicine, but distilled spirits recovered from dregs or marc of percolation or extraction in the manufacture of medicine may not be reused in the manufacture of flavoring extracts. Such recovered distilled spirits are not eligible for drawback and may be reused only in the manufacture of nonbeverage products. This may not be used in the manufacture of intermediate products.

§ 197.118 *Account of distilled spirits recovered in the manufacture of intermediate products.* Each claim will be accompanied by a summary statement showing in proof gallons the quantity of all recovered distilled spirits on hand at the beginning of the period, quantity in process beginning of the period, quantity recovered during the period, quantity used during the period in the manufacture of nonbeverage products subject to drawback, quantity otherwise used, and the quantity remaining on hand at the end of the period. Any discrepancy between the amount of recovered distilled spirits on hand at the end of the period as disclosed by actual inventory and the amount shown by the manufacturer's records must be reported in the summary with an explanation of the cause thereof. Any distilled spirits recovered from the dregs or marc of percolation, or extraction, of intermediate products as defined in § 197.16 are eligible for drawback of tax only when used in the manufacture of a nonbeverage product.

§ 197.119 *Account of intermediate products.* Each claim will be accompanied by a statement showing the quantity in wine gallons of each intermediate product and the quantity of distilled spirits (proof gallons) used therein on hand at the beginning of the period, produced during the period, and on hand at the end of the period, and showing the quantity in wine gallons of each intermediate product and the quantity of the distilled spirits contained therein (proof gallons) used during the period in eligible products, used during the period in other intermediate products, and otherwise disposed of during the period. Any discrepancy between the amount of intermediate products on hand at the end of the period as disclosed by actual inventory and the amount shown by the manufacturer's records must be reported in the statement with an explanation of the cause thereof. Only the distilled spirits remaining in an intermediate product at the time of its use in the manufacture of an approved nonbeverage product, are eligible for drawback.

Action on Claims

§ 197.120 *Action on quarterly claims.* The assistant regional commissioner will date-stamp the claim and, after recording, will examine the claim for the purpose of determining whether it is properly executed and that all supporting data have been submitted and will conduct such inquiries and investigations as may be necessary to verify that drawback is allowable on the distilled spirits covered by the claim. After completion of such verification he will allow or disallow the claim in accordance with his findings and existing law and regulations.

§ 197.121 *Action on monthly claims.* The assistant regional commissioner will date-stamp the claim and, after recording, will examine the claim for the purpose of determining whether it is properly executed and that all required supporting data have been submitted. Where a bond in the maximum penal sum or, if less than such maximum, in a sufficient penal sum, is on file, the assistant regional commissioner will verify that the amount of drawback claimed is correctly calculated, based on the quantity of distilled spirits stated to have been used by the manufacturer, and, without investigation, allow or disallow the claim (including the final claim for any quarter) in accordance with existing law and regulations. Where the bond on file is not in a sufficient penal sum, action on the claim will be withheld pending completion of an investigation subsequent to the end of the quarterly period. When the final claim for a quarter is received, the assistant regional commissioner will conduct such investigation as may be necessary to verify, as to each claim filed for the quarter, that the drawback allowed, or claimed where bond was insufficient, was proper: *Provided*, That where the total charges outstanding against the manufacturer's bond are less than the penal sum of such bond, the assistant regional commissioner may, at his discretion, conduct such investigation at less frequent intervals. Upon completion of verification the assistant regional commissioner will credit the manufacturer's bond in an amount equal to the drawback on the spirits found to have been lawfully used.

SUBPART H—RECORDS

§ 197.130 *Nature of records.* Every person intending to claim drawback on distilled spirits used in the manufacture or production of nonbeverage products must keep a permanent record showing the following data:

(a) The quantity, proof, and kind of distilled spirits received.

(b) Name and address of the person from whom the spirits were received.

(c) Kind of container and serial number thereof, serial number of certificate of tax payment or wholesale liquor dealer's stamp (if tank car or tank truck), serial number of internal revenue stamp (if barrel, drum, can, or case), or serial number of strip stamp (if bottle).

(d) Date on which received.

(e) Number of proof gallons and kind of distilled spirits used in the manufacture of each product, and the date of use.

(f) Name of each product in the manufacture of which distilled spirits were used.

(g) Quantity of each product produced and the alcohol content thereof.

(h) Name and address of the purchaser.

(i) Quantity of each product sold to each purchaser.

(j) Date of sale of product to each purchaser.

§ 197.131 *Exception.* The manufacturer need not keep the records required by paragraphs (h), (i), and (j) of § 197.130 where the nonbeverage product contains less than 3 percent of distilled spirits by volume, nor shall such records be required where nonbeverage products are sold by the producer direct to the consumer in retail quantities. The assistant regional commissioner may at any time require the keeping of such records upon at least 5 days' notice to the taxpayer.

§ 197.132 *Form of record.* No particular form of record is prescibed, but the data required to be shown shall be readily ascertainable from the records kept by the manufacturer. Such records shall be kept complete and current at all times, and shall be retained by the manufacturer on the place covered by the special-tax stamp, and shall be open to inspection by internal revenue officers during regular business hours. Such records shall be retained by the manufacturer for a period of not less than 2 years.

[F. R. Doc. 55-3997; Filed, May 16, 1955; 8:49 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter I—Office of the Secretary of Defense

Subchapter D—Regulations Pertaining to Military Justice

PART 61—UNIFORM RULES OF PROCEDURE FOR PROCEEDINGS IN AND BEFORE BOARDS OF REVIEW

RECONSIDERATIONS

Correction

In Federal Register Document 55-3684, 20 F. R. 3068, Friday, May 6, 1955, "Chapter IV—Joint Regulations of the Armed Forces" should read "Chapter I—Office of the Secretary of Defense", and the subchapter and part designations, reading "L" and "471" respectively, should have appeared as "D" and "61", as set forth above. Section 471.12 should be designated "§ 61.12."

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter I—Office of Defense Mobilization

[Defense Mobilization Order I-17]

DMO I-17—FURTHER ASSIGNMENT OF DEFENSE MOBILIZATION AUTHORITY TO THE GENERAL SERVICES ADMINISTRATION

Pursuant to the authority vested in me by Executive Order 10480 of August 14, 1953, Reorganization Plan No. 3, effective June 12, 1953, and the Defense Production Act of 1950, as amended, it is hereby ordered:

There is hereby delegated to the General Services Administration authority to prepare the reports to the Congress required by section 304 of the Defense Production Act of 1950, as amended, and section 4 of the Strategic and Critical Materials Stock Piling Act.

The nature and contents of such reports shall be determined by the Director of the Office of Defense Mobilization. The General Services Administration shall prepare such reports on behalf of the Director of the Office of Defense Mobilization and shall forward them to him for transmittal to the Congress.

This order shall take effect on May 13, 1955.

OFFICE OF DEFENSE MOBILIZATION,
ARTHUR S. FLEMMING,
Director.

[F. R. Doc. 55-4030; Filed, May 13, 1955; 3:41 p. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 19—BOARD OF VETERANS APPEALS

1. The centerhead "Jurisdiction" immediately preceding the contents for Part 19 is hereby deleted.

2. Sections 19.0, 19.1, 19.2, 19.3, 19.5, 19.6 and 19.7 are revised; § 19.4 remains unchanged. As amended, Part 19 reads as follows:

Sec.
19.0 General appellate jurisdiction.
19.1 Subject matter of appeals.
19.2 Time within which appeals must be filed.
19.3 Right to a hearing.
19.4 Form of decision.
19.5 Finality of decisions of the Board of Veterans Appeals.
19.6 Jurisdiction to correct errors.
19.7 Administrative appeals; employees authorized to file appeals.

AUTHORITY: §§ 19.0 to 19.7 issued under sec. 7, 48 Stat. 9; 38 U. S. C. 707. Interpret or apply secs. 9, 20, 48 Stat. 10, as amended, 309, as amended; 38 U. S. C. 709, 722.

§ 19.0 *General appellate jurisdiction.* All questions on claims involving benefits under the laws administered by the Veterans Administration are subject to review on appeal to the Administrator of Veterans Affairs, decisions in such cases to be made by the Board of Veterans Appeals. Jurisdiction to render final decisions on questions so reviewed on appeal is vested in the Board of Veterans Appeals, in accordance with Part II, Veterans Regulation 2 (a) (38 U. S. C., ch. 12A).

§ 19.1 *Subject matter of appeals.* More specifically, the Board's appellate jurisdiction covers questions of entitlement to compensation for service-connected disabilities; pension for disability without regard to service-connection; death compensation and pension; vocational rehabilitation, including need therefor; education; insurance benefits, including maturity of contracts, waiver of premiums, and legal beneficiary; payment or reimbursement for unauthorized medical expenses; burial allowances; disability suffered as the result of examination, treatment or hospitalization or vocational training; emergency officers retirement benefits; basic eligibility to loans and unemployment compensation; adjusted compensation; waiver or recovery of overpayments; forfeiture of rights; and all related mixed questions of fact and law, such as character and type of service, attorney fees, marital relations, dependency, validity of claims, apportionment, reduction and increase in compensation or pension benefits, and similar questions.

§ 19.2 *Time within which appeals must be filed.* Applications for review on appeal to the Administrator of Veterans Affairs shall be filed within 1 year from the date of mailing notification of the result of initial review or determination, except in simultaneously contested claims where one is allowed and one rejected, in which event the time allowed for filing an application for review on appeal shall be 60 days from date of mailing notice of the original action to the claimant to whom the action is adverse.

§ 19.3 *Right to a hearing.* A claimant who has executed a formal appeal to the Administrator and whose appeal has been certified by the office of original jurisdiction shall be entitled to appear without expense to the Government at a formal hearing before a section of the Board of Veterans Appeals or, at his discretion, in a regional or district office before designated personnel acting as a hearing agency for the Board of Veterans Appeals, with such witnesses and representative as he may designate.

§ 19.4 *Form of decision.* Decisions of the board will be in written form setting forth specifically the question considered by the board, the essential facts and the reasons for the board's decision.

§ 19.5 *Finality of decisions of the Board of Veterans Appeals.* The Board's determinations are final except for the correction of error therein or when, in the opinion of the Board, a contrary conclusion is justified on the basis of additional official information furnished by the service department. Decisions of the Board of Veterans Appeals made while a section of the Board is sitting in a regional or district office shall have the same effect as those rendered by the Board in Washington. However, when a claim has been finally disallowed by the Board, a subsequent claim on the same factual basis, if supported by new and material evidence, shall have the attributes of a new claim.

§ 19.6 *Jurisdiction to correct errors.* The Board of Veterans Appeals has authority to correct errors in any question in issue. If the Board finds a clear and unmistakable error on any question not in issue, such error will be brought to the attention of the proper organizational element by a memorandum from the chairman of the Board. The failure so to do may not be taken as a certification or decision by the Board that error does not exist.

§ 19.7 *Administrative appeals; employees authorized to file appeals.* Pursuant to the authority contained in paragraph VI, Part II, Veterans Regulation 2 (a) (38 U. S. C. ch. 12A), a Deputy Administrator, the Chief Medical Director, an Assistant Deputy Administrator,

an Assistant Administrator or the General Counsel is hereby authorized to file an appeal from any decision within 1 year from the date of such decision, or within 1 year from the date of mailing of notice of such decision, whichever is the later date. The Managers and directors of the various services and chiefs of divisions of the Veterans Benefits Office—D. C., the Insurance Center—D. C., and the district offices, are authorized to file an appeal from any decision originating within their established jurisdiction within 6 months from the date of such decision or within 6 months from the date of mailing of notice of such decision, whichever is the later date. The Manager of a regional office, the adjudication officer, the chief medical officer, and the chief, vocational rehabilitation and education division, are authorized to file an appeal from any decision within 60 days from the date of such decision or within 60 days from the date of mailing of notice of such decision, whichever is the later date.

This regulation is effective May 17, 1955.

[SEAL] J. C. PALMER,
Assistant Deputy Administrator.

[F. R. Doc. 55-4000; Filed, May 16, 1955; 8:49 a. m.]

TITLE 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 51—REGISTRY

FEES, SURCHARGES AND RETURN RECEIPTS

Section 51.4 *Fees, surcharges, and return receipts* (19 F. R. 7810) is hereby amended as follows:

a. Amend paragraph (a) by striking "No indemnity_____ $0.30" from the table under the caption "Liability limit:".

b. Amend paragraph (b) by striking "30 cents" in the first sentence, and by inserting in lieu thereof "40 cents".

The foregoing amendments shall be effective June 7, 1955, except that for the Washington, D. C. Post Office, they shall be effective June 6, 1955.

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25, sec. 12, 65 Stat. 676; 5 U. S. C. 22, 369; 39 U. S. C. 246f)

[SEAL] ABE MCGREGOR GOFF,
The Solicitor.

[F. R. Doc. 55-4007; Filed, May 16, 1955; 8:50 a. m.]

PART 58—CERTIFIED MAIL

Part 58 containing the rules on certified mail, published as notice of proposed rule making (20 F. R. 1075), is hereby adopted without change effective June 7, 1955, except that for the Washington, D. C., Post Office they shall be effective June 6, 1955.

[SEAL] ABE MCGREGOR GOFF,
The Solicitor.

Sec.
58.1 Description.
58.2 Class of mail to which applicable.
58.3 Fees.
58.4 Mailing.
58.5 Delivery.
58.6 Inquiry.

AUTHORITY: §§ 58.1 to 58.6 issued under R. S. 161, 388, 396, secs. 304, 309, 42 Stat. 24, 25, sec. 12, 65 Stat. 676; 5 U. S. C. 22, 361, 369, 39 U. S. C. 246f.

§ 58.1 *Description.* Certified mail service provides for a receipt to the sender and a record of delivery at the office of address. No record is kept at the office at which mailed. It is handled in the ordinary mails and no insurance coverage is provided. The mail will be endorsed in the following manner:

CERTIFIED
MAIL
No. 286539

§ 58.2 *Class of mail to which applicable.* Only first-class letter mail having no value will be accepted as certified mail. This does not exclude articles of a nonnegotiable character and other matter which would involve a cost of duplication if lost or destroyed. The mail may be sent by air on payment of the required postage. Return receipt service requested at the time of mailing only, and special delivery services are available on payment of the prescribed fees.

§ 58.3 *Fees.*

	Cents
Fee in addition to postage	15
Return receipts:	
Showing to whom and when delivered	7
Showing to whom, when and address where delivered	31
Inquiry fee	10

§ 58.4 *Mailing*—(a) *Payment of fees and postage.* A certified mail stamp is available for the fee. However, the fee and postage may be paid by ordinary postage stamps, meter stamps, or by permit imprints.

(b) *Where to mail.* You may mail certified mail at the post office, branch or station, or give it to a rural carrier. It may also be deposited in mail drops in post offices or in street letter boxes, provided you follow specific directions in paragraph (c) of this section.

(c) *How to mail.* Obtain blank certified mail coupons (no charge) at your post office or from your rural mail carrier. Also obtain blank return receipt forms if needed. Following is the procedure:

(1) Enter on the receipt portion of the certified mail coupon the name and complete address of the person or firm to whom the mail is addressed. If return receipt service is wanted, check block on the receipt to show the fee. (See § 58.3.)

(2) If return receipt is wanted, enter the certified mail number on the return receipt card, address it to yourself and attach it to the back of the envelope. If you desire the return receipt to show the address where the letter was delivered, there is a block at the top of the form which must be checked by you.

(3) Be sure to attach to the envelope sufficient postage stamps to pay for the certified mail fee, first-class postage, return receipt fee, or special delivery fee.

(4) If you want a postmarked sender's receipt, attach the certified mail sticker to the letter and present the letter and the completed coupon to the postal employee. If given to a rural carrier he will bring the postmarked receipt back to you.

(5) If you do not want a postmarked receipt, attach the Certified Mail sticker to the address side of the envelope directly above the address, detach your receipt, and deposit the letter in the mail box. Mark your receipt to show the date.

(d) *Firm mailing books.* If you mail an average of three or more letters at one time, you may use mailing books Form 3877a which are furnished by the postal service without charge, or specially printed mailing bills. A series of numbers will be furnished you. The sheets of the book become the sender's receipts. Books must be presented with the letters to be mailed. You must also obtain at your expense a stamp for endorsing the certified letters, or you may have your envelopes overprinted with the endorsement. The endorsement must be a facsimile or proportionate enlargement of the official endorsement shown in § 58.1. Following are instructions for use of the forms:

(1) Insert the word "Certified" in the space provided at the top of the form.

(2) The mailer must endorse and number the letters. If return receipt or special delivery services are requested, mark the letters "Return Receipt Requested," "Return Receipt Requested Showing Address Where Delivered," or "Special Delivery." Prepare and attach return receipt to the back of the envelopes with the receipt side showing.

(3) Show on the bill the number of each article and the name and address of addressee.

(4) Enter only the amount of fees paid for return receipts.

(5) Affix necessary postage to the articles.

(6) The accepting employee will count the items, receipt the bill for the total number, and return the bill to you.

RECEIPT FOR CERTIFIED MAIL ..... No. 286539

(Name and complete address)

To .....

Postmark or date

Return receipt (Check one) 7¢ 31¢

SAVE THIS RECEIPT
Present it if you make inquiry

By .....

POD Form 3800
January 1955

(See other side)

CERTIFIED MAIL NO. 286539

§ 58.5 *Delivery*—(a) *Procedure.* Mail for delivery by carriers is taken out on the first trip after it is received, unless the addressee has requested the postmaster to hold his mail at the post office. The mail will be delivered to the addressee or his authorized representative after the delivery receipt is obtained by the postal employee. Delivery rules are the same as for registered mail. (See § 51.7 (b).)

(b) *Notice of arrival.* The carrier will leave a notice of arrival if he cannot deliver the certified letter for any reason. The letter will be brought back to the post office and held for you. If the letter is not called for or its redelivery requested, it will be returned at the expiration of the period stated by the sender, or after 15 days if no period is stated.

(c) *Rural delivery.* Rural carriers will deliver certified mail to your residence if it is not more than ½ mile from the route and if there is a passable road leading to it. Otherwise, a notice will be left in your box so that you may either meet him at the box on his next trip, or call at the post office for the mail.

(d) *Star route delivery.* Star route carriers may deliver certified mail only when the addressee has authorized the postmaster in writing to give the mail to the carrier. The carrier will be required to sign for the mail and the responsibility of the postal service ends on delivery to the carrier.

(e) *Delivery records.* The delivery records will be held for six months. At the end of that period the records will be destroyed.

§ 58.6 *Inquiry.* Inquiry on Form 1510 concerning the loss of a certified letter may be made at the post office on payment of a fee of 10 cents. After a reasonable time has elapsed for the letter to have been received by the addressee, application for a duplicate return receipt may be made without charge. You must present your sender's receipt at the time an inquiry is filed or a request for a duplicate return receipt is made.

[F. R. Doc. 55-4006; Filed, May 16, 1955; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Circular 1909]

PART 194—POTASSIUM PERMITS AND LEASES

Correction

In Federal Register Document 55-3830, published at page 3229 of the issue for Thursday, May 12, 1955, "2,360 acres", appearing in the second sentence of § 194.3 (b), should read "2,560 acres".

Appendix C—Public Land Orders

[Public Land Order 1147]

ALASKA

REVOKING PUBLIC LAND ORDER NO. 198 OF DECEMBER 20, 1943 (AIR NAVIGATION SITE WITHDRAWAL NO. 212)

By virtue of the authority contained in section 4 of the act of May 24, 1928, c. 728 (45 Stat. 729; 49 U. S. C. 214), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Public Land Order No. 198 of December 20, 1943, withdrawing the following described lands in Alaska for use of the Civil Aeronautics Administration, Department of Commerce, in the maintenance of air-navigation facilities, as Air-Navigation Site Withdrawal No. 212, is hereby revoked:

From the terminal of the existing cable and rail tramway on the shore of a small cove on the east side of Forrester Island in latitude 54°48' N., longitude 133°31' W., by approximate bearings and distance to point of beginning as follows: S. 59° W., 2,300 feet, along tramway to winch shed; S. 10° W., 750 feet, to southeast corner of 21 ft. x 21 ft. concrete building foundation; South, 125 feet to the point of beginning of the tract; thence, West, 100 feet; North, 200 feet; East, 200 feet; South, 200 feet; West, 100 feet to the point of beginning.

The tract described contains 0.92 acre.

The lands are within the boundaries of the Tongass National Forest and the Forrester Island National Wildlife Refuge, established by Proclamation of August 20, 1902, and Executive Order No. 1458 of January 11, 1912, respectively.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

MAY 11, 1955.

[F. R. Doc. 55-3969; Filed, May 16, 1955; 8:45 a. m.]

[Public Land Order 1148]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDER OF MAY 4, 1907, AND EXECUTIVE ORDER NO. 5289 OF MARCH 4, 1930

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Order of May 4, 1907, reserving certain public lands in Alaska pending survey and segregation for educational purposes, is hereby revoked so far as it affects the lands in the following-described area:

QUINHAGAK (KWINHAGAK)

At the mouth of the Kuskokwim River, near latitude 60°, longitude 162°: Aggregating (not to exceed) 40 acres.

2. Executive Order No. 5289 of March 4, 1930, reserving certain public lands in Alaska pending survey and segregation for educational purposes, is hereby revoked so far as it affects the lands in the following-described area:

BUCKLAND

Near latitude 66° 5', longitude 161° 5' U. S. Survey No. 2018: Aggregating 26.68 acres.

The land at Buckland is located a short distance up the Buckland River off Eschscholtz Bay in Kotzebue Sound. It is in an isolated area typical of the Seward Peninsula tundra country and has little attraction for settlement in the foreseeable future. Many thousands of acres of open, unappropriated, public lands surround this parcel.

The land at Quinbagak (Kwinbagak) is situated on the Kanektok River near the mouth of the Kuskokwim where it enters Kuskokwim Bay on the Bering Sea. At the present time this area is sparsely settled with little attraction for settlement in the foreseeable future. It, also, is surrounded by vast area of open, unappropriated, public domain.

For a period of 91 days, commencing at 10:00 a. m. on the 35th day after the date of this order the public lands affected by this order shall, subject to valid existing rights, including the rights, if any, of the Natives of Alaska, and the provisions of existing withdrawals, be subject only to settlement under the homestead laws or the Alaska Home Site Act of May 26, 1934 (48 Stat. 809; 43 U. S. C. 461), or the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended, by qualified veterans of World War II and the Korean Conflict and other qualified persons entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended, subject to the requirements of applicable laws.

Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to settlement, petition, location, selection or other appropriation by the public generally as may be authorized by the public land laws.

Settlement claims under the homestead laws shall be governed by the regulations contained in Parts 65 and 66, inclusive, of Title 43 of the Code of Federal Regulations, and such claims under the Alaska Home Site Act of May 26, 1934, and the Small Tract Act of June 1, 1938, as amended shall be governed by the regulations contained in §§ 64.6 to 64.10, inclusive, of that title.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Fairbanks, Alaska.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

MAY 11, 1955.

[F. R. Doc. 55-3970; Filed, May 16, 1955; 8:45 a. m.]

[Public Land Order 1149]

WASHINGTON, ARIZONA, CALIFORNIA

REVOCATION OF EXECUTIVE ORDER OF DECEMBER 5, 1921, EXECUTIVE ORDER NO. 7504 OF DECEMBER 11, 1936, AND EXECUTIVE ORDER NO. 8004 OF NOVEMBER 12, 1938, WITHDRAWING LAND IN WASHINGTON AS RESERVOIR SITE RESERVE NO. 14; IN ARIZONA FOR USE BY BUREAU OF PLANT INDUSTRY, AND IN CALIFORNIA FOR USE OF DEPARTMENT OF THE NAVY, RESPECTIVELY

By virtue of the authority vested in the President by section 1 of the act of

June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Order of December 5, 1921, reserving the following-described lands in Washington as Reservoir Site Reserve No. 14, Ahtanum Creek, is hereby revoked:

WILLAMETTE MERIDIAN

T. 12 N., R. 14 E.,
Sec. 30, lots 1, 2, 3 and 4, E½.

The areas described aggregating 384.20 acres are within the Snoqualmie National Forest.

2. Executive Order No. 7504 of December 11, 1936, withdrawing the following-described land in Arizona for use by the Bureau of Plant Industry, Department of Agriculture, as an experiment station in the study of plant diseases, is hereby revoked:

GILA AND SALT RIVER MERIDIAN

T. 2 N., R. 8 W.,
Sec. 23, NW¼NW¼.

The area described contains 40 acres. The area described lies west of Tonopah, Arizona, and is accessible over graded desert roads. It is grazing land containing typical southwest vegetation.

3. Executive Order No. 8004 of November 12, 1938, withdrawing the following described lands in California for use of the Department of the Navy for Naval purposes is hereby revoked:

SAN BERNARDINO MERIDIAN

T. 16 S., R. 10 E.,
Sec. 35.

The area described contains 640 acres. The land described is sandy and gravelly, with an annual precipitation of two inches per year. It lies about four miles south of Plaster City and can be reached by desert motor trails. The land is not valuable for agricultural, timber or mineral purposes, and has only limited grazing value. Vegetation consists of ocotillo, creosote bush, cactus.

No application for the lands described in paragraphs 2 and 3 may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

This order shall not otherwise become effective to change the status of the described lands (in paragraphs 2 and 3) until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition, location and selection, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

Veterans preference-right applications under the said act of September 27, 1944, may be filed on or before 10:00 a. m. on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, filed on or before 10:00 a. m. on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries concerning the lands in Arizona and California may be addressed to the Manager, Land Office, Bureau of Land Management, Phoenix, Arizona and Sacramento, California, respectively.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

MAY 11, 1955.

[F. R. Doc. 55-3971; Filed, May 16, 1955; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 51]

UNITED STATES STANDARDS FOR BEETS [1]

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the United States Department of Agriculture is considering the revision of United States Standards for Beets, as recodified (7 CFR Part 51; 18 F. R. 7082), so as to revise certain of the provisions contained therein with respect to bunched beets and also to add standards to cover beets with short-trimmed tops and topped beets, pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.).

All persons who desire to submit written data, views or arguments for consideration in connection with the proposed standards should file the same with the Chief, Fresh Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, South Building, Washington 25, D. C., not later than 30 days after publication hereof in the FEDERAL REGISTER.

The proposed standards are as follows:

STYLES

Sec.
51.375 Bunched beets.
51.376 Beets with short-trimmed tops.
51.377 Topped beets.

GRADES

51.378 U. S. No. 1.
51.379 U. S. No. 2.

UNCLASSIFIED

51.380 Unclassified.

TOLERANCES

51.381 Tolerances.

APPLICATION OF TOLERANCES

51.382 Application of tolerances.

STANDARD BUNCHING

51.383 Standard bunching.

DEFINITIONS

51.384 Well trimmed.
51.385 Firm.
51.386 Fairly smooth.
51.387 Fairly well shaped.
51.388 Fairly clean.
51.389 Damage.
51.390 Fresh.
51.391 Diameter.
51.392 Excessively rough.
51.393 Seriously misshapen.
51.394 Serious damage.

AUTHORITY: §§ 51.375 to 51.394 issued under sec. 205, 60 Stat. 1090, 7 U. S. C. 1624.

STYLES

§ 51.375 *Bunched beets.* "Bunched beets" means beets which are tied in bunches. The tops shall be full length or removed to not less than 6 inches.

§ 51.376 *Beets with short-trimmed tops.* "Beets with short-trimmed tops" means, unless otherwise specified, beets showing leafstems ranging to not more than 4 inches in length.

§ 51.377 *Topped beets.* "Topped beets" means beets with tops removed to not more than one-half inch in length.

GRADES

§ 51.378 *U. S. No. 1.* "U. S. No. 1" consists of beets of similar varietal characteristics the roots of which are well trimmed, firm, fairly smooth, fairly well shaped, fairly clean and free from soft rot and free from damage caused by cuts, freezing, growth cracks, disease, rodents or insects, or mechanical or other means. Bunched beets or beets with short-trimmed tops shall have tops which are fresh and free from decay and free from damage caused by discoloration, freezing, disease, insects, or mechanical or other means.

(a) Unless otherwise specified, the diameter of each beet shall be not less than 1½ inches. (See § 51.381.)

§ 51.379 *U. S. No. 2.* "U. S. No. 2" consists of beets of similar varietal char-

[1] Packing of the product in conformity with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

acteristics the roots of which are well trimmed, firm, not excessively rough, not seriously misshapen and which are free from soft rot and free from serious damage caused by cuts, dirt, freezing, growth cracks, disease, rodents or insects, or mechanical or other means. Bunched beets or beets with short-trimmed tops shall have tops which are fresh and free from decay and free from damage caused by discoloration, freezing, disease, insects, or mechanical or other means.

(a) Unless otherwise specified, the diameter of each beet shall be not less than 1½ inches. (See § 51.381.)

UNCLASSIFIED

§ 51.380 *Unclassified.* "Unclassified" consists of beets which have not been classified in accordance with either of the foregoing grades. The term "unclassified" is not a grade within the meaning of these standards, but is provided as a designation to show that no grade has been applied to the lot.

TOLERANCES

§ 51.381 *Tolerances.* In order to allow for variations incident to proper grading and handling, the following tolerances shall be permitted:

(a) *For bunched beets*—(1) *For defects of roots.* 10 percent, by count, for roots in any lot which fail to meet the requirements of the grade: *Provided,* That not more than one-half of this amount, or 5 percent, shall be allowed for defects causing serious damage, including therein not more than 1 percent for soft rot;

(2) *For defects of tops.* 10 percent, by count, for bunches with tops in any lot which fail to meet the requirements of the grade, including therein not more than 5 percent for decay;

(3) *For off-size roots.* 5 percent, by count, for roots in any lot which are smaller than the specified minimum diameter, and 10 percent, by count, for roots which are larger than any specified maximum diameter; and

(4) *For off-length tops.* 5 percent, by count, for bunches with tops in any lot which fail to meet the requirements of the style.

(b) *For beets with short-trimmed tops or topped beets*—(1) *For defects of roots.* 10 percent, by weight, for roots in any lot which fail to meet the requirements of the grade: *Provided,* That not more than one-half of this amount, or 5 percent, shall be allowed for defects causing serious damage, including therein not more than 1 percent for soft rot;

(2) *For defects of tops.* 10 percent, by weight for roots with tops in any lot which fail to meet the requirements of the grade, including therein not more than 5 percent for decay;

(3) *For off-size roots.* 5 percent, by weight, for roots in any lot which are smaller than the specified minimum diameter, and 10 percent, by weight, for roots which are larger than any specified maximum diameter; and,

(4) *For off-length tops.* 10 percent, by weight, for beets with tops in any lot which fail to meet the requirements of the style specified.

APPLICATION OF TOLERANCES

§ 51.382 *Application of tolerances.* (a) The contents of individual packages in the lot, based on sample inspection, are subject to the following limitations: *Provided,* That the averages for the entire lot are within the tolerances specified for the grade:

(1) For packages which contain more than 5 pounds and a tolerance of 10 percent or more is provided, individual packages in any lot shall have not more than one and one-half times the tolerance specified. For packages which contain more than 5 pounds and a tolerance of less than 10 percent is provided, individual packages in any lot shall have not more than double the tolerance specified except that at least one defective and one off-size specimen shall be permitted in any package; and,

(2) For packages which contain 5 pounds or less, individual packages in any lot are not restricted as to the percentage of defects and off-size: *Provided,* That not more than one beet which is frozen or affected by soft rot may be permitted in any package.

STANDARD BUNCHING

§ 51.383 *Standard bunching.* (a) Standard bunches of beets shall be fairly uniform in size and each bunch of beets shall weigh not less than 1 pound and contain at least 3 beets.

(b) Not more than 10 percent of the bunches in any lot may fail to meet the requirements for "Standard Bunching".

DEFINITIONS

§ 51.384 *Well trimmed.* "Well trimmed" means that unattractive secondary rootlets have been removed and that any objectionably long or coarse tail-like part of the root has been cut off.

§ 51.385 *Firm.* "Firm" means that the beet root is not soft, flabby or shriveled.

§ 51.386 *Fairly smooth.* "Fairly smooth" means that the root is not rough or ridged to the extent that the appearance is materially affected. Very slight roughness over the crown or very slight pitting caused by the shedding of dead leaves shall not be considered as materially affecting the appearance.

§ 51.387 *Fairly well shaped.* "Fairly well shaped" means that the root is not misshapen to the extent that the appearance is materially affected.

§ 51.388 *Fairly clean.* "Fairly clean" means that the individual root is reasonably free from dirt, stain or other foreign matter, and that the general appearance of the roots in the container is not more than slightly affected.

§ 51.389 *Damage.* "Damage" means any defect which materially affects the appearance, or the edible or shipping quality of the individual beet root, or the general appearance of the beet roots in the container, or causes a loss of more than 5 percent, by weight, in the ordinary preparation for use, or which materially affects the appearance or shipping quality of the tops. Any one of the following defects, or any combination of defects, the seriousness of which exceeds the maximum allowed for any one defect, shall be considered as damage:

(a) Growth cracks when not shallow and not smooth or when the appearance is materially affected; and,

(b) Discoloration when yellowing or other discoloration of the tops materially affect the appearance of the bunch. The appearance of bunches with tops having slight discoloration such as yellowing, browning, or other abnormal color affecting a few leaves shall not be considered materially affected.

§ 51.390 *Fresh.* "Fresh" means that the tops are not badly wilted.

§ 51.391 *Diameter.* "Diameter" means the greatest dimension of the root measured at right angles to a line running from the crown to the base of the root.

§ 51.392 *Excessively rough.* "Excessively rough" means that the root is rough or ridged to the extent that the appearance is seriously affected.

§ 51.393 *Seriously misshapen.* "Seriously misshapen" means that the root is misshapen to the extent that the appearance is seriously affected.

§ 51.394 *Serious damage.* "Serious damage" means any defect which seriously affects the appearance, or the edible or shipping quality of the individual beet, or the general appearance of the beets in the container, or causes a loss of more than 20 percent, by weight, in the ordinary preparation for use.

These proposed standards, if issued, will supersede the existing United States Standards for Bunched Beets (18 F. R. 7082) and also the following standards which have not heretofore been published in the FEDERAL REGISTER; namely: (1) United States Standards for Beets with Short-trimmed Tops, issued April 27, 1942, and reissued August 1, 1947; and (2) United States Standards for Topped Beets, issued April 23, 1934, and reissued March 15, 1946.

Dated: May 11, 1955.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Marketing Services.

[F. R. Doc. 55-3975; Filed, May 16, 1955; 8:45 a. m.]

[7 CFR Part 51]

UNITED STATES STANDARDS FOR TURNIPS OR RUTABAGAS[1]

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the United States Department of Agriculture is considering the consolidation and revision of existing separate standards relating respectively, to bunched turnips

[1] Packing of the product in conformity with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

and topped turnips or rutabagas which have not been published heretofore in the FEDERAL REGISTER. This action will be taken pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.).

All persons who desire to submit written data, views or arguments for consideration in connection with the proposed standards should file the same with the Chief, Fresh Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, South Building, Washington 25, D. C., not later than 30 days after publication hereof in the FEDERAL REGISTER.

The proposed standards are as follows:

STYLES

Sec.
51.2610 Bunched turnips.
51.2611 Turnips with short-trimmed tops.
51.2612 Topped turnips or rutabagas.

GRADES

51.2613 U. S. No. 1.
51.2614 U. S. No. 2.

UNCLASSIFIED

51.2615 Unclassified.

TOLERANCES

51.2616 Tolerances.

APPLICATION OF TOLERANCES

51.2617 Application of tolerances.

STANDARD BUNCHING

51.2618 Standard bunching.

DEFINITIONS

51.2619 Similar varietal characteristics.
51.2620 Well trimmed.
51.2621 Firm.
51.2622 Fairly smooth.
51.2623 Fairly well shaped.
51.2624 Fairly clean.
51.2625 Damage.
51.2626 Fresh.
51.2627 Diameter.
51.2628 Excessively rough.
51.2629 Seriously misshapen.
51.2630 Serious damage.

AUTHORITY: §§ 51.2610 to 51.2630 issued under sec. 205, 60 Stat. 1090, 7 U. S. C. 1624.

STYLES

§ 51.261 *Bunched turnips.* "Bunched turnips" means turnips which are tied in bunches. The tops shall be full length or removed to not less than 6 inches.

§ 51.2611 *Turnips with short-trimmed tops.* "Turnips with short-trimmed tops" means, unless otherwise specified, turnips showing leafstems ranging to not more than 4 inches in length.

§ 51.2612 *Topped turnips or rutabagas.* "Topped turnips or rutabagas" means turnips or rutabagas with tops removed to not more than three-fourths inch in length.

GRADES

§ 51.2613 *U. S. No. 1.* "U. S. No. 1" consists of turnips or rutabagas of similar varietal characteristics the roots of which are well trimmed, firm, fairly smooth, fairly well shaped, fairly clean, and free from soft rot and free from damage caused by cuts, discoloration, freezing, growth cracks, pithiness, woodiness, watercore, dry rot, other disease, insects or rodents, or mechanical or other means. Bunched turnips, or turnips with short-trimmed tops shall have tops which are fresh and free from decay and free from damage caused by discoloration, freezing, disease, insects, or mechanical or other means.

(a) Unless otherwise specified, the diameter of each turnip or tutabaga shall be not less than 1¾ inches. (See § 51.2616.)

§ 51.2614 *U. S. No. 2.* "U. S. No. 2" consists of turnips or rutabagas of similar varietal characteristics the roots of which are well trimmed, firm, not excessively rough, not seriously misshapen and which are free from soft rot and free from serious damage caused by cuts, dirt, discoloration, freezing, growth cracks, pithiness, woodiness, watercore, dry rot, disease, insects or rodents, or mechanical or other means. Bunched turnips or turnips with short-trimmed tops shall have tops which are fresh and free from decay and free from damage caused by discoloration, freezing, disease, insects, or mechanical or other means.

(a) Unless otherwise specified, the diameter of each turnip or rutabaga shall be not less than 1¾ inches. (See § 51.-2616).)

UNCLASSIFIED

§ 51.2615 *Unclassified.* "Unclassified" consists of turnips or rutabagas which have not been classified in accordance with either of the foregoing grades. The term "unclassified" is not a grade within the meaning of these standards, but is provided as a designation to show that no grade has been applied to the lot.

TOLERANCES

§ 51.2616 *Tolerances.* In order to allow for variations incident to proper grading and handling, the following tolerances shall be permited:

(a) *For bunched turnips*—(1) *For defects of roots.* 10 percent, by count, for roots in any lot which fail to meet the requirements of the grade: *Provided,* That not more than one-half of this amount, or 5 percent, shall be allowed for defects causing serious damage, including therein not more than 1 percent for soft rot;

(2) *For defects of tops.* 10 percent, by count, for bunches with tops in any lot which fail to meet the requirements of the grade, including therein not more than 5 percent for decay;

(3) *For off-size roots.* 5 percent, by count, for roots in any lot which are smaller than the specified minimum diameter, and 10 percent, by count, for roots which are larger than any specified maximum diameter; and,

(4) *For off-length tops.* 5 percent, by count, for bunches with tops in any lot which fail to meet the requirements of the style.

(b) *For turnips with short-trimmed tops or topped turnips or rutabagas*—(1) *For defects of roots.* 10 percent, by weight, for roots in any lot which fail to meet the requirements of the grade: *Provided,* That not more than one-half of this amount, or 5 percent, shall be allowed for defects causing serious damage, including therein not more than 1 percent for soft rot;

(2) *For defects of tops.* 10 percent, by weight, for roots with tops in any lot which fail to meet the requirements of the grade, including therein not more than 5 percent for decay;

(3) *For off-size roots.* 5 percent, by weight, for roots in any lot which are smaller than the specified minimum diameter, and 10 percent, by weight, for roots which are larger than any specified maximum diameter; and,

(4) *For off-length tops.* 10 percent, by weight, for turnips or rutabagas with tops in any lot which fail to meet the requirements of the style.

APPLICATION OF TOLERANCES

§ 51.2617 *Application of tolerances.* (a) The contents of individual packages in the lot, based on sample inspection, are subject to the following limitations: *Provided,* That the averages for the entire lot are within the tolerances specified for the grade:

(1) For packages which contain more than 5 pounds and a tolerance of 10 percent or more is provided, individual packages in any lot shall have not more than one and one-half times the tolerance specified. For packages which contain more than 5 pounds and a tolerance of less than 10 percent is provided, individual packages in any lot shall have not more than double the tolerance specified except that at least one defective and one off-size specimen shall be permitted in any package; and,

(2) For packages which contain 5 pounds or less, individual packages in any lot are not restricted as to the percentage of defects and off-size: *Provided,* That not more than one turnip or rutabaga which is frozen or affected by soft rot may be permitted in any package.

STANDARD BUNCHING

§ 51.2618 *Standard bunching.* (a) Standard bunches of turnips shall be fairly uniform in size and each bunch of turnips shall weigh not less than 1 pound and contain at least 3 turnips.

(b) Not more than 10 percent of the bunches in any lot may fail to meet the requirements for "Standard Punching".

DEFINITIONS

§ 51.2619 *Similar varietal characteristics.* "Similar varietal characteristics" means that the turnips or rutabagas in any package shall be of similar color and shape. For example, yellow fleshed varieties shall not be mixed with white fleshed varieties, and flat, globe, or long varieties shall not be mixed in the same package.

§ 51.2620 *Well trimmed.* "Well trimmed" means that unattractive secondary rootlets have been removed, and that any objectionably long or coarse tail-like part of the root has been cut off.

§ 51.2621 *Firm.* "Firm" means that the root is not soft, flabby or shriveled.

§ 51.2622 *Fairly smooth.* "Fairly smooth" means that the root is not rough or ridged to the extent that the appearance is materially affected.

§ 51.2623 *Fairly well shaped.* "Fairly well shaped" means that the root is not misshapen to the extent that the appearance is materially affected.

§ 51.2624 *Fairly clean.* "Fairly clean" means that the individual root is reasonably free from dirt or other foreign matter, and that the general appearance of the roots in the container is not more than slightly affected.

§ 51.2625 *Damage.* "Damage" means any defect which materially affects the appearance, or the edible or shipping quality of the individual turnip or rutabaga root or the general appearance of the turnips or rutabagas in the container, or causes a loss of more than 5 percent, by weight, in the ordinary preparation for use, or which materially affects the appearance or shipping quality of the tops. Any one of the following defects, or any combination of defects, the seriousness of which exceeds the maximum allowed for any one defect, shall be considered as damage:

(a) Cuts when discolored, rough or deep, or when materially affecting the appearance of the turnip or rutabaga;

(b) Growth cracks or air cracks when discolored or deep, or when the appearance is materially affected;

(c) Pithiness when the edible quality is materially affected by pith;

(d) Insects or rodents when the injury to the root materially affects the appearance of the turnip or rutabaga or causes a loss of more than 5 percent, by weight, or the edible quality of the root is materially affected; or when the tops are injured to the extent that the appearance of the bunch is materially affected; and

(e) Discoloration when yellowing or other discoloration of the tops materially affect the appearance of the bunch. The appearance of bunches of tops having slight discoloration such as yellowing, browning, or other abnormal color affecting a few leaves shall not be considered materially affected.

§ 51.2626 *Fresh.* "Fresh" means that the tops are of normal green color and are not badly wilted.

§ 51.2627 *Diameter.* "Diameter" means the greatest dimension of the root measured at right angles to a line running from the crown to the base of the root.

§ 51.2628 *Excessively rough.* "Excessively rough" means that the root is rough or ridged to the extent that the appearance is seriously affected.

§ 51.2629 *Seriously misshapen.* "Seriously misshapen" means that the root is forked or misshapen to the extent that the appearance is seriously affected.

§ 51.2630 *Serious damage.* "Serious damage" means any defect which seriously affects the appearance, or the edible or shipping quality of the individual turnip or rutabaga or the general appearance of the turnips or rutabagas in the container, or causes a loss of more than 20 percent, by weight, in the ordinary preparation for use.

These proposed standards, if issued, will supersede the following standards which have not heretofore been published in the FEDERAL REGISTER; Namely: (1) United States Standards for Bunched Turnips, issued August 9, 1927, and reissued January 18, 1943; and (2) United States Standards for Topped Turnips or Rutabagas, issued March 21, 1935, and reissued September 27, 1949.

Dated: May 11, 1955.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Marketing Services.

[F. R. Doc. 55-3976; Filed, May 16, 1955; 8:46 a. m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 120]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITION FOR ESTABLISHMENT OF TOLERANCES FOR RESIDUES OF CHLOROBENZILATE (ETHYL 4,4'-DICHLOROBENZILATE)

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408 (d (1), 68 Stat. 512; 21 U. S. C. 348 (d) (1)), the following notice is issued:

A petition has been filed by Geigy Chemical Corporation, 89 Barclay Street, New York, New York, for the establishment of a tolerance of 8 parts per million for residues of the acaricide Chlorobenzilate (ethyl 4,4'-dichlorobenzilate) in or on apples, cantaloups, lemons, oranges, and pears.

An analytical method proposed in the petition for determining residues of Chlorobenzilate on apples, pears, and cantaloups, in the absence of residues of DDT, is based on the Schechter-Haller Method for DDT, in Industrial and Engineering Chemistry, Volume 17, page 704 (1945), with certain modifications. Essentially, it involves nitration of the compound and the subsequent interaction of the nitrated product with sodium methylate to produce a red color which is measured spectrophotometrically at 538 mμ.

An analytical method proposed in the petition for determining residues of Chlorobenzilate on apples, pears, and cantaloups in the presence of residues of DDT involves saponification of the Chlorobenzilate with alcoholic KOH, thereby converting the compound to the corresponding potassium salt of dichlorobenzilic acid, while at the same time the DDT is converted to its dehydrochlorinated derivative. The latter is removed by extraction with petroleum ether. The potassium salt, upon acidification, is converted to dichlorobenzilic acid and extracted with ethyl ether. The acid is then determined chlorometrically using the Schechter-Haller procedure and measuring spectrophotometric absorption of the colored complex at 538 mμ.

An analytical method proposed in the petition for determining residues of Chlorobenzilate on citrus fruit is published in Agricultural and Food Chemistry, Volume 2, pages 1080–1083 (1954).

Dated: May 13, 1955.

[SEAL] JOHN L. HARVEY,
Acting Commissioner
of Food and Drugs.

[F. R. Doc. 55-4008; Filed, May 16, 1955; 8:50 a. m.]

CIVIL AERONAUTICS BOARD

[14 CFR Parts 4b, 40, 41, 42]

[Draft Release 55-13]

TRIAL OPERATION OF TRANSPORT CATEGORY AIRPLANES IN CARGO SERVICE AT INCREASED ZERO FUEL AND LANDING WEIGHTS

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety Regulation, notice is hereby given that the Bureau will propose to the Board the adoption of a Special Civil Air Regulation as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety Regulation, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by June 13, 1955. Copies of such communications will be available after June 15, 1955, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

On July 21, 1954, the Board issued Order No. S–630 granting the request of The Flying Tiger Line, Inc., for a waiver of certain structural provisions of Part 4b of the Civil Air Regulations. On November 19, 1954, and on January 24, 1955, the Board issued similar Orders Nos. S–653 and S–663, to Slick Airways, Inc., and American Airlines, Inc., respectively. These three orders permit, for a trial period ending June 30, 1955, the operation of DC–6A airplanes in cargo service at weights in excess of those permitted in passenger service. The weights involved are the zero fuel weight (maximum weight of the airplane with no disposable fuel and oil) and the structural landing weight. The use of the higher weights was made contingent upon certain findings by the Administrator and upon certain conditions of operation and inspection.

In issuing the first waiver the Board considered that the results of the trial operations authorized on a limited scale thereby could serve to ascertain the validity of the evaluation used in justifying such trial operations and could contribute further information on whether the operating stress levels imposed on the airplane's structure are within safe limits for continued operations. The Board also envisaged that successful experience with such trial operations could eventually lead to the

establishment of a sound basis for differentiating between standards for passenger and cargo air carrier operations.

It is believed that a more extensive background of operating experience will be necessary to assure that the conditions in the waivers do in fact provide a sound basis for establishing future standards for airplanes in cargo operations at increased weights. In view of the variation in design and strength characteristics of the different types of transport category airplanes, it would be desirable if the experience gained were to include trial operations with several of the different types of airplanes to ascertain that these variations will not result in unsafe conditions. Experience to date with the one type of airplane operating under the conditions of the waivers has resulted in no indication of structural distress which would reflect adversely on these conditions. This experience is regarded as providing sufficient justification for permitting other types of transport category airplanes to engage in trial operations. In this regard, the Bureau has been advised by the manufacturers of their belief that most of the existing transport category airplanes meet satisfactorily the terms of the structural waiver in respect to strength, sudden fatigue failure, etc.

In order to facilitate the accumulation of the necessary operating experience, it is believed appropriate to extend the terms of the existing waivers so as to permit any number of any type of transport category airplane to be operated at increased weights in cargo service for a period of two years. During this period the Bureau expects interested persons to submit their evaluation of the trial operations and recommendations resulting therefrom with respect to future regulatory action.

It is envisioned that most of the airplanes taking advantage of this regulation will continue to be used in cargo service. However, if any of the airplanes operated under the provisions of this regulation are to be made eligible at any later time for passenger service, the provisions of this regulation require accomplishment of a special inspection and an evaluation of the fatigue limitations.

In view of the foregoing, notice is hereby given that it is proposed to recommend to the Board the adoption of a Special Civil Air Regulation to read as follows:

Notwithstanding the applicable structural provisions of the Civil Air Regulations, subject to the extent and to the conditions set forth in this special regulation, any air carrier may operate transport category airplanes which were certificated under the provisions of Part 4a or 4b in cargo service only, subject to the conditions hereinafter set forth:

(1) The air carrier shall submit an application to the Administrator indicating its desire to operate its airplanes under the provisions of this special regulation, and indicating which airplanes would be involved.

(2) The air carrier shall furnish a statement from each manufacturer for each type of airplane involved indicating in each case that the airplane manufacturer approves the operation of such type of airplane under the provisions of this regulation and that the airplane manufacturer will establish the inspection procedure prescribed in paragraph (4) of this Special Civil Air Regulation and will supervise such inspection as is found necessary.

(3) The zero fuel weight (maximum weight of the airplane with no disposable fuel and oil) and the structural landing weight may be increased beyond the maxima approved in full compliance with the applicable Civil Air Regulations: *Provided,* That the Administrator of Civil Aeronautics finds that the increase in either such weight is not likely to reduce seriously the structural strength, that the probability of sudden fatigue failure is not noticeably increased, and that the flutter, deformation, and vibration characteristics do not fall below those required by the Civil Air Regulations: *And provided further,* That any increase in the zero fuel weight approved shall not exceed 5 percent and that the increase in the structural landing weight shall not exceed the amount, in pounds, of the increase in the zero fuel weight.

(4) Airplanes for which the increased weights become effective shall be subject to inspections in addition to those normally performed, such inspections to be established by the manufacturer of the type airplane concerned, subject to the approval of the Administrator of Civil Aeronautics and to be supervised as found necessary by that manufacturer, to safeguard against possible structural distress resulting from the higher operating stress levels. Results of such inspections shall be reported to the Administrator of Civil Aeronautics at such times as he shall establish.

(5) Airplanes for which the increased weights become effective shall be operated in accordance with the transport category performance operating limitations prescribed in Part 40, 41, or 42 of the Civil Air Regulations, whichever is applicable.

(6) The air carrier shall keep and make available, upon request, to the Civil Aeronautics Board, the Administrator of Civil Aeronautics, or the manufacturer of the type airplane concerned, records of all flights conducted with airplanes for which the increased weights become effective, such records to include the actual take-off, zero fuel, and landing weights.

(7) The Airplane Flight Manual of each airplane operating under the provisions of this special regulation shall be appropriately revised so as to include the necessary operating limitations and operating information.

(8) An airplane which has been operated at increased weights under the provisions of this regulation shall not be used for the carriage of passengers, except under the following conditions:

(a) Special inspections established by the manufacturer and approved by the Administrator of Civil Aeronautics shall have been accomplished.

(b) The effects of the operations at increased weights on structural fatigue shall have been evaluated by the airplane manufacturer and taken into account in any fatigue limitations established for the airplane.

This regulation will terminate on June 30, 1957, unless sooner superseded or rescinded.

This regulation is proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended, and may be changed in the light of comment received in response to this notice of proposed rule making.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interprets or applies secs. 601–610, 52 Stat. 1007–1012, as amended; 49 U. S. C. 551–560)

By the Bureau of Safety Regulation.

[SEAL] JOHN M. CHAMBERLAIN, *Director.*

[F. R. Doc. 55–4004; Filed, May 16, 1955; 8:49 a. m.]

NOTICES

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

MAY 12, 1955.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 30616: Phosphate Rock from Florida to Prairie Du Chien, Wis. Filed by R. E. Boyle, Jr., Agent, for interested rail carriers. Rates on phosphate rock, crude, other than ground, as described in the application, carloads, from Bartow, Fla., and other points in Florida to Prairie du Chien, Wis.

Grounds for relief: Circuitous routes.

Tariff: Supplement 123 to Atlantic Coast Line Railroad I. C. C. B–3232; Supplement 113 to Seaboard Air Line Railroad I. C. C. A–8153.

FSA No. 30617: Phosphate Rock—Florida Mines to Oklahoma and Texas. Filed by R. E. Boyle, Jr., Agent, for interested rail carriers. Rates on phosphate rock, as more fully described in the application, carloads, from Bartow, Fla., and other points in Florida to specified points in Oklahoma and Texas.

Grounds for relief: Short-line distance formula and circuity.

Tariff: Supplement 123 to Atlantic Coast Line Railroad Company, I. C. C. B-3232; Supplement 113 to Seaboard Air Line Railroad Company, I. C. C. A-8153.

FSA No. 30618: Phosphate Rock—Florida to Mobile, Ala. Filed by R. E. Boyle, Jr., Agent, for interested rail carriers. Rates on phosphate rock, crude, as more fully described in the application, carloads, from Bartow, Fla., and other Florida points to Mobile, Ala.

Grounds for relief: Rail-water competition and circuity.

Tariff: Supplement 123 to Atlantic Coast Line Railroad Company, I. C. C. B-3232; Supplement 113 to Seaboard Air Line Railroad Company, I. C. C. A-8153.

FSA No. 30619: Carbon refractory materials from Morganton, N. C. Filed by R. E. Boyle, Jr., Agent, for interested rail carriers. Rates on furnace lining, furnace lining blocks, cement or paste, fire brick and fire brick shapes, carloads, from Morganton, N. C. to Buffalo, N. Y., Wheeling, W. Va., Bessemer, Pa., and other specified points in Pennsylvania.

Grounds for relief: Short line distance formula and circuity.

Tariff: Supplements Nos. 118 and 126 to Agent C. A. Spaninger's I. C. C. Nos. 1324 and 1351, respectively.

FSA No. 30620: Copper rods—Fort Wayne, Ind., to Alabama and Georgia. Filed by H. R. Hinsch, Agent, for interested rail carriers. Rates on unfinished copper rods, in boils, carloads, from Fort Wayne, Ind., to Birmingham and North Birmingham, Ala., Rome and North Rome, Ga.

Grounds for relief: Circuitous routes.

FSA No. 30621: Phosphate rock—Florida to Pennsylvania. Filed by R. E. Boyle, Jr., Agent, for interested rail carriers. Rates on phosphate rock, as described in the application, carloads, from Bartow, Fla., and other Florida points to Ebensburg, Ironsides, and Kimberton, Pa.

Grounds for relief: Short-line distance formula and circuity.

Tariff: Supplement 123 to Atlantic Coast Line Railroad Company tariff, I. C. C. B-3232; Supplement 113 to Seaboard Air Line Railroad Company tariff, I. C. C. A-8153.

FSA No. 20622: Phosphate rock—Florida to Kentucky and Ohio. Filed by R. E. Boyle, Jr., Agent, for interested rail carriers. Rates on phosphate rock, as described in the application, carloads, from Bartow, Fla., and other Florida points to Covington, Newport, Vanceburg, Ky., and Cincinnati, Ohio.

Grounds for relief: Circuitous routes.

Tariff: Supplement 123 to Atlantic Coast Line Railroad Company tariff, I. C. C. B-3232; Supplement 113 to Seaboard Air Line Railroad Company tariff, I. C. C. A-8153.

By the Commission.

[SEAL] HAROLD D. McCOY,
Secretary.

[F. R. Doc. 55-3993; Filed, May 16, 1955; 8:48 a. m.]

[Rev. S. O. 562, Taylor's I. C. C. Order 48-A]

NASHVILLE, CHATTANOOGA & ST. LOUIS RAILWAY CO. ET AL.

REROUTING OR DIVERSION OF TRAFFIC

Upon further consideration of Taylor's I. C. C. Order No. 48 and good cause appearing therefor:

It is ordered, That:

(a) Taylor's I. C. C. Order No. 48 be, and it is hereby vacated and set aside.

(b) Effective date: This order shall become effective at 6:00 a. m., May 11, 1955.

It is further ordered, That this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., May 10, 1955.

INTERSTATE COMMERCE COMMISSION,
CHARLES W. TAYLOR,
Agent.

[F. R. Doc. 55-3994; Filed, May 16, 1955; 8:48 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

COLORADO

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

General Services Administration has filed an application, Serial No. Colorado-010775, for the withdrawal of the lands described below, from all forms of appropriations, including the mining and mineral leasing laws. The applicant desires the land for construction and maintenance of an antenna to be operated by the National Bureau of Standards.

For a period of 30 days from the date of publication of this notice, persons having cause may present their objections in writing to the undersigned official of the Bureau of Land Management, Department of the Interior.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

SIXTH PRINCIPAL MERIDIAN, COLORADO

T. 1 N., R. 72 W.,
Section 21: E½NE¼; NE¼SE¼, exclusive of Patented Mineral Survey 539, Phillips Placer—120 acres approximately.

J. ELLIOTT HALL,
Acting State Supervisor.

MAY 9, 1955.

[F. R. Doc. 55-3973; Filed, May 16, 1955; 8:45 a. m.]

NEVADA

SMALL TRACT CLASSIFICATION ORDER NO. 106, AMENDED

MAY 5, 1955.

Pursuant to the authority delegated to me by the Area Administrator, Area II, Bureau of Land Management, by Order No. 4, dated May 5, 1954, paragraph 9 of Nevada Small Tract Classification Order No. 106 dated March 11, 1955, is hereby amended to provide an annual rental of 1/20 of the appraised value of the land, payable for the entire lease period in advance of issuance of the lease in accordance with the regulations contained in 43 CFR 257.11. All lands described in column (1) of the schedule in paragraph 1 are affected by this amendment.

E. R. GREENSLET,
State Supervisor.

[F. R. Doc. 55-3972; Filed, May 16, 1955; 8:45 a. m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-2557, G-3214]

ORANGE GROVE GAS GATHERING CO. ET AL.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 11, 1955.

In the matter of Orange Grove Gas Gathering Company, et al., Docket No. G-2557; Natural Gas Pipeline Company of America, Docket No. G-3214.

Take notice that Orange Grove Gas Gathering Company, et al. (Applicants), independent producers with their principal places of business in the State of Texas, filed, on August 19, 1954, an application for a certificate of public convenience and necessity pursuant to section 7 (c) of the Natural Gas Act, authorizing the proposed acts or operations hereinafter described.

Orange Grove proposes to purchase and produce natural gas from acreage located in the Orange Grove and Wade City Field area in Jim Wells County, Texas, transport such gas by means of approximately 8 miles of pipe line, and sell such gas to Natural Gas Pipeline Company of America (Natural) at an initial base price of 12.5 cents per Mcf under the terms of a 20-year contract dated June 1, 1954. Daily deliveries are estimated at approximately 2,000 Mcf for the first 18 months, with a minimum of 25,000 Mcf a month thereafter.

The Applicants proposing to sell natural gas to Orange Grove are Southwestern Oil and Refining Company, Henry R. Smith, O. S. Wyatt, Jr. and A. A. Moore, a partnership doing business as Wymore Oil Company, Abe Epstein, Simon Grossman, Ellis Green, John J. Pichinson, B. T. Parr, J. H. Sterling, Milton Robinowitz, Morris D. Jaffe, Albert M. Rogers, Kabe Oil Corporation and Sterling Investment Company. Said gas is proposed to be sold under two contracts providing for an initial net price varying from 9 to 10.5 cents per Mcf.

Take notice that Natural, a Delaware corporation with its principal place of business in Chicago, Illinois, filed on September 27, 1954, as supplemented October 25, 1954, an application interdependent with that of Applicants in Docket No. G–2557 for a certificate of public convenience and necessity pursuant to section 7 (c) of the Natural Gas Act, authorizing construction and operation of certain natural-gas facilities as hereinafter described.

Natural proposes to construct and operate a tap connection and metering facilities on its pipeline facilities in Jim Wells County, Texas, for the receipt of natural gas from Orange Grove, as set forth above.

Applicants were issued temporary authorization on August 25, 1954, to perform the acts or operations described herein.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 2, 1955, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved and the issues presented by such applications: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceeding pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before the 27th day of May 1955. The application is on file with the Commission for public inspection.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55–3984; Filed, May 16, 1955; 8:47 a. m.]

[Docket Nos. G–2733, G–2936, G–3263, G–3612, G–3619, G–3621, G–3622, G–4587]

DEEDS OIL & GAS CO. ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

MAY 10, 1955.

In the matters of Deeds Oil & Gas Company, Docket No. G–2733; Little Indian Natural Gas Company, Docket No. G–2936; C. F. Engel & Charles O. Engel, Docket No. G–3263; Hawker Gas Company, Hanley Gas Company, and Moore Fling Gas Company, Docket No. G–3612; Bee Gas Company, Docket No. G–3619; Clyde D. & Carl D. Jackson d/b/a Jackson Brothers, Docket Nos. G–3621, G–3622; Eddie A. Kirby, Docket No. G–4587.

Take notice that the above-designated Applicants filed applications on September 13, 21, 27, and 29, and on October 27, 1954, for certificates of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing the Applicant in each respective docket to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in each respective application on file with the Commission, and open for public inspection.

Each Applicant produces natural gas from gas fields in West Virginia, which is sold in interstate commerce to Godfrey L. Cabot, Inc., for resale.

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 27, 1955, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) or § 1.32 (b) where requested, of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 16, 1955. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55–3979; Filed, May 16, 1955; 8:46 a. m.]

[Docket No. G–3864]

LEXIA BUCHANAN, ET AL.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that Lexia Buchanan, Morris Buchanan, and Hortense B. Skiles (Applicant), individuals whose address is San Antonio, Texas, filed on October 11, 1954, an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant produces and sells natural gas for transportation in interstate commerce for resale as indicated below:

Field	Pruchaser	Contract date	Price per Mcf (cents)
Heyser Field, Calhoun County, Tex	Tennessee Gas Transmission Co	Mar. 7, 1949	10.925
Seven Sisters Field, Duval County, Tex	Tennessee Gas Transmission Co	Oct. 1, 1953	10.00
North Pettus-Burnell Field, Karnes, Bee, and Goliad Counties, Tex.	United Gas Pipe Line Co	May 28, 1947	(1)
Alice Field, Jim Wells County, Tex	The Altex Corp	Apr. 21, 1954	8.75

[1] Average weighted price in San Antonio Market District.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955, at 9:50 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55–3985; Filed, May 16, 1955; 8:47 a. m.]

[Docket Nos. G–4180, G–4181, G–4292, G–4293]

HEEP OIL CORP. ET AL.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

In the matters of Heep Oil Corporation and Herman F. Heep, Docket No. G–4180; Heep Oil Corporation, Herman F. Heep, Conroe Drilling Company, Gus S. Wortham, William A. Smith and H. C. Heldenfels, trustee, Docket No. G–

4181; Heep Oil Corporation, Docket No. G–4292; Frank W. Michaux and Morris Cannan, Docket No. G–4293.

Take notice that there have been filed with the Commission applications as hereinafter specified:

Docket No.	Applicant	Address	Date filed
G–4180	Heep Oil Corp., et al	Austin, Tex	Oct. 5, 1954
G–4181	do	do	Do.
G–4292	Heep Oil Corp	do	Oct. 8, 1954
G–4293	Frank W. Michaux, et al		Do.

each for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing each Applicant to sell natural gas as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in each application, each of which is on file with the Commission and open for public inspection.

Applicants produce and sell natural gas for transportation in interstate commerce for resale as indicated below:

Docket No.	Field	Purchaser	Contract date	Price per Mcf (cents)
G–4180	Plymouth and West Callaboose Fields, San Patricio County, Tex.	Tennessee Gas Transmission Co	Jan. 7, 1954	7.02738
G–4181	Red Fish Bay Field, Nueces County, Tex.	Tennessee Gas Transmission Co	Apr. 26, 1954	10.00
G–4292	Ray Field, Bee County, Tex	Transcontinental Gas Pipe Line Corp.	Nov. 4, 1949	7.017964
G–4293	Kittie Field, Live Oak County, Tex	Texas Eastern Transmission Corp	Dec. 15, 1953	10.20

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955, at 10:00 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceedings pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55–3986; Filed, May 16, 1955; 8:47 a. m.]

[Docket No. G–4907]

DORCHESTER CORP.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that Dorchester Corporation (Applicant), a Delaware corporation with its principal place of business in Dallas, Texas, filed on November 17, 1954, an application for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Under a contract dated December 1, 1946, Applicant sells natural gas produced from the Hugoton Field, Texas County, Oklahoma, to Natural Gas Pipeline Company of America for transportation in interstate commerce for resale. The rate of delivery is approximately 76,000 Mcf per day.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955, at 10:20 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55–3988; Filed, May 16, 1955; 8:48 a. m.]

[Docket No. G–5619]

LOUISIANA NEVADA TRANSIT CO.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that Louisiana Nevada Transit Company (Applicant), a Nevada corporation with its principal place of business in Ada, Oklahoma, filed on December 3, 1954, an application for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of a 220 horsepower compressor station on its Haynesville Field (Louisiana) lateral to enable Applicant to continue to take natural gas from the field.

Applicant states that the estimated cost of $47,215 is to be financed from funds on hand.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955, at 10:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55–3989; Filed, May 16, 1955; 8:48 a. m.]

[Docket Nos. G–4959—G–4961, G–5945, G–6305, G–6474—G–6476, G–6487, G–6522, G–6691, G–3160]

WELSH OIL AND GAS CO. ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

MAY 10, 1955.

In the matters of Welsh Oil and Gas Company, Docket No. G–4959; Goose Run Oil and Gas Company, Docket No. G–4960; Todd Oil and Gas Company, Docket No. G–4961; P. C. McKenzie Company, Docket No. G–5945; Henrietta Yerger Jones dba Edwin Jones Oil Company, Docket No. G–6305; Zeller Gas Company, Docket No. G–6474; Raychel Gas Company, Docket No. G–6475; Floyd Gas Company, Docket No. G–6476; Albert E. Rice, et al., Lease, Docket No. G–6487; John G. Cochran and Company, Docket No. G–6522; Idah Woods Johnson, Docket No. G–6691; Freshour Gas Company, Docket No. G–3160.

Take notice that the above-designated Applicants filed applications under the above-numbered dockets on the dates reflected in the tabulation attached hereto, for certificates of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing each Applicant to render service as re-

flected in the tabulation set forth below, subject to the jurisdiction of the Commission, all as more fully represented in the applications, which are on file with the Commission, and open for public inspection.

Applicants produce natural gas from fields in West Virginia, Texas, Oklahoma, and Pennsylvania which is sold in interstate commerce to the various purchasers shown in the tabulation set forth below, for resale.

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 28, 1955, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) or § 1.32 (b) where requested of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 17, 1955. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY,
Secretary.

Docket No.	Date of filing	Applicant	Authorized official	Purchaser	Location		
					Field	County or Parish	State
G-4959	11/18/54	Welch Oil & Gas Co.	W. H. Mossor	Barron Kidd for resale to Hope Natural Gas Co.	Not stated	Ritchie	W. Va.
G-4960	11/18/54	Goose Run Oil & Gas Co.	do	do	do	do	W. Va.
G-4961	11/18/54	Todd Oil & Gas Co.	do	do	do	do	W. Va.
G-5945	11/26/54	P. C. McKenzie Co.	P. C. McKenzie	Equitable Gas Co	Grant District.	Wetzel	W. Va.
G-6251	11/29/54	Henrietta Yerger Jones d/b/a Edwin Jones Oil Co.	Van Lewis	Transcontinental Gas P. L. Co.	Greta	Refugio	Tex.
G-6305	11/29/54	Henrietta Yerger Jones d/b/a Edwin Jones Oil Co.	do	Texas Eastern Trans. Corp.	Englehart	Colorado	Tex.
G-6474	11/29/54	Zeller Gas Co	Webster Myers	South Penn Natural Gas Co.	Not stated	Putnam	W. Va.
G-6475	11/29/54	Raychel Gas Co	do	do	do	do	W. Va.
G-6476	11/29/54	Floyd Gas Co	do	do	do	do	W. Va.
G-6487	11/29/54	Albert E. Rice et al. lease.	Verle M. Stewart.	Godfrey L. Cabot.	Center District.	Gilmer	W. Va.
G-6522	11/29/54	John G. Cochran & Co.	John G. Cochran.	Pennsylvania Gas Co.	Middle	Warren and Forest.	Pa.
G-6691	11/30/54	Idah Woods Johnson.	W. E. Robertson.	Cities Service Gas Co.	West Edmond Lime Unit.	Logan Okla, Kingfisher & Canadian.	Okla.
G-3160	9/27/54	Freshour Gas Co.	T. W. Elliott	Penova Interests for resale to Hope Natural Gas Co.	Murphy District.	Ritchie	W. Va.

[F. R. Doc. 55-3982; Filed, May 16, 1955; 8:47 a. m.]

[Docket No. G-5917]

LONE STAR PRODUCING CO.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that Lone Star Producing Company (Applicant), a Texas corporation, with its principal place of business in Dallas, Texas, filed on November 26, 1954, an application for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant produces natural gas from the East Panhandle Field, Wheeler County, Texas; Chickasha Field, Grady County, Oklahoma; Kelly-Snyder Field, Scurry County, Texas; McElroy-Wilshire Field, Upton County, Texas; and the Sheridan Field, Colorado County, Texas, and, under some 57 contracts, sells gas so produced to Lone Star Gas Company, El Paso Natural Gas Company, Fullerton Oil Company, and Iroquois Gas Company, as hereinafter described.

Under Contracts 1 through 52, Applicant sells natural gas produced from the East Panhandle Field to Lone Star Gas Company at a price of 4 cents per Mcf for Contracts 1 through 39, and 3.574 cents per Mcf for Contracts 40 through 52. Under Contract 54, dated January 1, 1953, Applicant sells its undivided ½ interest in gas produced from the Chickasha Field to Lone Star Gas Company at a price of 10 cents per Mcf.

Under Contracts 56 and 57 Applicant sells natural gas to Lone Star Gas Company and Fullerton Oil Company, respectively, at the outlet of the Kelly-Snyder Gasoline Plant operated by Barnsdall Oil Company. The gas is produced from wells in the Kelly-Snyder Field.

Pursuant to Contract 53, dated June 24, 1952, Applicant sells natural gas to El Paso Natural Gas Company at the outlet of its McElroy-Wilshire Gasoline Plant, located in the McElroy-Wilshire Field. The contract volume is 10,000 Mcf per day and price for such gas as of June 7, 1954, was 10 cents per Mcf.

Under Contract 55 Applicant sells natural gas produced in the Sheridan Field to Iroquois Gas Company, deliveries being made at the outlet of the Sheridan Gasoline Plant. The contract volume is 50,000 Mcf per day and the price is 16.5 cents per Mcf.

Applicant requests that the Commission enter an order disclaiming jurisdiction over Applicant's sales of gas in the Kelly-Snyder Field.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955 at 10:40 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55-3990; Filed, May 16, 1955; 8:48 a. m.]

[Docket Nos. G-4564, G-4582, G-4583, G-4585, G-4586, G-4602, G-4603]

SOHIO PETROLEUM CO.

NOTICE OF APPLICATIONS AND DATE OF HEARING

MAY 10, 1955.

Take notice that Sohio Petroleum Company (Applicant), an Ohio corporation with its principal place of business in Cleveland, Ohio, filed applications in the above dockets[1] for certificates of

[1] The application in Docket No. G-4564 was filed October 25, 1954; in Docket Nos. G-4582, G-4583, G-4585, and G-4586 on October 27, 1954; and in Docket Nos. G-4602 and G-4603 on October 29, 1954. Also, the application in Docket No. G-4586 was supplemented on February 10, 1955.

public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the applications which are on file with the Commission and open for public inspection.

Applicant produces and sells natural gas for transportation in interstate commerce for resale as indicated below:

Docket No.	Field	Purchaser	Contract date
G-4564	Fairbanks Area, Harris County, Tex.	Texas Illinois Natural Gas Pipeline Co.	Nov. 15, 1952
G-4582	Delhi Processing Plant, Richland Parish, La.	Texas Eastern Transmission Corp.	Apr. 15, 1948
G-4583	Hico-Knowles Field, Lincoln Parish, La.	Mississippi River Fuel Corp.	June 1, 1951
G-4585	South Lewisburg Field, Acadia Parish, La.	Texas Northern Gas Corp.	Oct. 30, 1953
G-4586	Ridgeway Field, Stephens County, Okla.	Lone Star Gas Co.	Jan. 1, 1953
G-4602	South Lewisburg Field, Acadia Parish, La.	Texas Northern Gas Corp.	July 3, 1952
G-4603	South Lewisburg Field, Acadia Parish, La.	Texas Northern Gas Corp.	Apr. 1, 1952

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955, at 10:10 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street, NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-3987; Filed, May 16, 1955; 8:47 a. m.]

[Docket No. G-6872]

ARKANSAS FUEL OIL CORP.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that Arkansas Fuel Oil Corporation (Applicant), a Delaware corporation with its principal place of business in Shreveport, Louisiana, filed on December 27, 1954, an application for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant produces natural gas in the Willow Springs Field, Gregg County, Texas, and Applicant proposes to sell gas so produced to Arkansas Louisiana Gas Company for transportation in interstate commerce.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 14, 1955, at 10:50 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before June 7, 1955.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-3991; Filed, May 16, 1955; 8:48 a. m.]

[Docket No. G-8553]

UNITED FUEL GAS CO.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that United Fuel Gas Company (Applicant), a West Virginia corporation whose address is Charleston, West Virginia, filed an application on March 7, 1955, for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant requests authorization for the installation of measuring and regulating facilities and for the sale of gas to Luther Lusher for resale to consumers at Wire Branch, Cabell County, West Virginia.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on May 27, 1955, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceedings pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure (18 CFR 1.32 (b)).

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before May 26, 1955.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-3980; Filed, May 16, 1955; 8:46 a. m.]

[Docket No. G-8568]

NEW YORK STATE NATURAL GAS CORP.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 11, 1955.

Take notice that New York State Natural Gas Corporation (Applicant), a New York corporation whose address is 140 Stanwix Street, Gateway Center, Pittsburgh 22, Pennsylvania, filed an application on March 11, 1955, for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicant to construct and operate certain facilities hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant proposes to construct and operate 20.9 miles of 20-inch transmission pipe line from a point near Portageville, Wyoming County, to The Craigs Connection in Livingston County, all in New York, connecting two portions of Applicant's existing Line No. 24. The proposed facilities will complete Applicant's Line No. 24 which loops its Line No. 14 extending from its State Line Compressor Station, Potter County, Pennsylvania, to a point of connection with Rochester Gas and Electric Corporation near Caledonia in Livingston County, New York.

Applicant represents that the proposed facilities are necessary to serve the increasing requirements of existing customers.

The total estimated cost of the proposed facilities is $1,225,000. Applicant intends to finance the proposed facilities in part from available company funds and in part from funds to be obtained by issuing notes or stock, or both, at face or par value to its parent corporation, Consolidated Natural Gas Company.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on June 3, 1955, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before May 31, 1955. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55-3992; Filed, May 16, 1955; 8:48 a. m.]

[Docket No. G-8736]

ROCKLAND LIGHT AND POWER CO., AND ROCKLAND ELECTRIC CO.

NOTICE OF APPLICATION AND DATE OF HEARING

MAY 10, 1955.

Take notice that Rockland Light and Power Company (Rockland Light) of Nyack, N. Y., and its wholly-owned subsidiary, Rockland Electric Company (Rockland Electric), of Closter, N. J., filed an application on April 7, 1955, supplemented on April 19, and 26, 1955, for a certificate of public convenience and necessity, pursuant to section 7 of the Natural Gas Act, authorizing Applicants to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application as supplemented, which is on file with the Commission and open for public inspection.

Applicants propose to construct about ½ mile of 6-inch pipeline and related metering and regulating facilities in order to sell and deliver gas to Ford Motor Company, Mahwah, New Jersey, for use in Ford's plant for a paint drying process and incidental purposes. Rockland Light will sell the required gas to Rockland Electric, which will sell and deliver such gas to Ford.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations, and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on May 27, 1955, at 9:40 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.32 (b) (18 CFR 1.32 (b)) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before May 26, 1955.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55-3981; Filed, May 16, 1955; 8:46 a. m.]

[Docket No. G-8883]

PHILLIPS PETROLEUM CO.

ORDER SUSPENDING PROPOSED CHANGES IN RATES

Phillips Petroleum Company (Applicant), on April 12, 1955, tendered for filing proposed changes in presently effective rate schedules for sales subject to the jurisdiction of the Commission. The proposed changes, which constitute increased rates and charges, are contained in the following designated filings which are proposed to become effective on the dates shown:

Description	Purchaser	Rate schedule designation	Effective date [1]
Letter, dated Jan. 11, 1955	Consolidated Gas Utilities Corp.	Supplement No. 6 to applicant's FPC gas rate schedule No. 19.	May 13, 1955
Notice of change, dated Apr. 6, 1955.	Consolidated Gas Utilities Corp.	Supplement No. 7 to applicant's FPC gas rate schedule No. 19.	May 13, 1955

[1] The stated effective date is the first day after expiration of the required 30 days' notice, or the effective date proposed by applicant if later.

The increased rates and charges proposed in the aforesaid filings have not been shown to be justified, and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed changes, and that the above-designated rate schedules and supplements be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority contained in sections 4 and 15 of the Natural Gas Act and the Commission's general rules and regulations (18 CFR, Chapter I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of said proposed changes in rates and charges; and, pending such hearing and decision thereon, the above-designated rate schedules and supplements be and the same hereby are suspended and the use thereof deferred until October 13, 1955, and until such further time as they are made effective in the manner prescribed by the Natural Gas Act.

(B) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the Commission's rules of practice and procedure.

Adopted: May 4, 1955.

Issued: May 11, 1955.

By the Commission.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 55-3983; Filed, May 16, 1955; 8:47 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

TEXAS

DISASTER ASSISTANCE; DELINEATION AND CERTIFICATION OF CERTAIN COUNTIES IN DROUGHT AREAS

Pursuant to Public Law 875, 81st Congress (42 U. S. C. 1855 et seq.), the President determined on July 21, 1954 that a major disaster occasioned by drought existed in the State of Texas.

Pursuant to the authority delegated to me by the Administrator, Federal Civil Defense Administration (18 F. R. 4609; 19 F. R. 2148; 19 F. R. 5364), and for the purposes of section 2 (d) of Public Law 38, 81st Congress, as amended by Public Law 115, 83d Congress, and section 301 of Public Law 480, 83d Congress, certain counties in the State of

Texas were on August 10th, 1954 (19 F. R. 5155), as amended (19 F. R. 5388; 19 F. R. 5957; 19 F. R. 6127; 19 F. R. 6417; 19 F. R. 6557; 19 F. R. 7547; 19 F. R. 8635; 20 F. R. 140; 20 F. R. 813; 20 F. R. 1384 and 20 F. R. 3142), determined to be the areas affected by the major disaster by drought.

Pursuant to the aforesaid delegations, the delineation and certification of counties in the drought area in the State of Texas, as above described are herewith amended by adding the counties as set forth below on May 5th, 1955, to the major disaster area in the State of Texas:

TEXAS

Bee, Floyd, Hidalgo, Kenedy, Midland.

Done at Washington, D. C., this 11th day of May 1955.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 55-3977; Filed, May 16, 1955; 8:46 a. m.]

Rural Electrification Administration

[Administrative Order 4940]

MISSOURI

LOAN ANNOUNCEMENT

APRIL 15, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Missouri 56K Ste. Genevieve	$1,330,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3920; Filed, May 13, 1955; 8:48 a. m.]

[Administrative Order 4941]

SOUTH DAKOTA

LOAN ANNOUNCEMENT

APRIL 15, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
South Dakota 36E Edmunds	$50,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3921; Filed, May 13, 1954; 8:48 a. m.]

[Administrative Order 4942]

WEST VIRGINIA

LOAN ANNOUNCEMENT

APRIL 15, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
West Virginia 10V Harrison	$192,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3922; Filed, May 13, 1955; 8:48 a. m.]

[Administrative Order 4943]

KANSAS

LOAN ANNOUNCEMENT

APRIL 15, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Kansas 34X Barton	$425,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3923; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4944]

ARKANSAS

LOAN ANNOUNCEMENT

APRIL 15, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Arkansas 28M Conway	$50,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3924; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4945]

MINNESOTA

LOAN ANNOUNCEMENT

APRIL 19, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Minnesota 75P Red Lake	$50,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3925; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4946]

MINNESOTA

LOAN ANNOUNCEMENT

APRIL 19, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Minnesota 99M Lake of the Woods	$407,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3926; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4947]

MISSISSIPPI

LOAN ANNOUNCEMENT

APRIL 19, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Mississippi 30U Jones	$560,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3927; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4948]

SOUTH DAKOTA

LOAN ANNOUNCEMENT

APRIL 18, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
South Dakota 42D Lyman	$340,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3928; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4949]

ALLOCATION OF FUNDS FOR LOANS

APRIL 20, 1955.

Inasmuch as North Arkansas Electric Cooperative, Inc. has transferred certain of its properties and assets to Black River Electric Cooperative, and Black River Electric Cooperative has assumed in part the indebtedness to United States of America, of North Arkansas Electric Cooperative, Inc., arising out of loans made by United States of America pur-

suant to the Rural Electrification Act of 1936, as amended, I hereby amend:

(a) Administrative Order No. 850, dated August 8, 1944, as amended by Administrative Order No. 3607, dated February 20, 1952, by changing the project designation appearing therein as "Arkansas 26 Fulton (Louisiana 5019B1 Jefferson Davis)" in the amount of $10,562 to read "Arkansas 26 Fulton (Louisiana 5019B1 Jefferson Davis)" in the amount of $5,562 and "Missouri 33TP3 Reynolds (Arkansas 26 Fulton [Louisiana 5019B1 Jefferson Davis])" in the amount of $5,000.

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3929; Filed, May 13, 1955; 8:49 a. m.]

[Administrative Order 4950]

ALLOCATION OF FUNDS FOR LOANS

APRIL 20, 1955.

Inasmuch as Glades Electric Cooperative, Inc., has transferred certain of its properties and assets to Okefenoke Rural Electric Membership Corporation, and Okefenoke Rural Electric Membership Corporation has assumed in part the indebtedness to United States of America, of Glades Electric Cooperative, Inc., arising out of loans made by United States of America pursuant to the Rural Electrification Act of 1936, as amended, I hereby amend:

(a) Administrative Order No. 1298, dated June 5, 1947, by changing the project designation appearing therein as "Florida 35D Glades" in the amount of $90,000 to read "Florida 35D Glades" in the amount of $84,000 and "Georgia 92TP1 Brantley (Florida 35D Glades)" in the amount of $6,000.

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3930; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4951]

WISCONSIN

LOAN ANNOUNCEMENT

APRIL 21, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Wisconsin 63S Bayfield	$30,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3931; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4952]

MICHIGAN

LOAN ANNOUNCEMENT

APRIL 21, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Michigan 28AC Presque Isle	$375,000

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3932; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4953]

ALLOCATION OF FUNDS FOR LOAN

APRIL 21, 1955.

Inasmuch as Grundy Electric Cooperative, Inc., has transferred certain of its properties and assets to N. W. Electric Power Cooperative, and N. W. Electric Power Cooperative has assumed in part the indebtedness to United States of America, of Grundy Electric Cooperative, Inc., arising out of loans made by United States of America pursuant to the Rural Electrification Act of 1936, as amended, I hereby amend:

(a) Administrative Order No. 1316, dated August 18, 1947, by changing the project designation appearing therein as "Missouri 44K Grundy" in the amount of $545,000 to read "Missouri 44K Grundy" in the amount of $450,687.69 and "Missouri 72TP2 Gentry (Missouri 44K Grundy)" in the amount of $94,312.31.

[SEAL] FRED H. STRONG,
Acting Administrator.

[F. R. Doc. 55-3933; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4954]

ALABAMA

LOAN ANNOUNCEMENT

APRIL 25, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Alabama 28M Chambers	$420,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3934; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4955]

TEXAS

LOAN ANNOUNCEMENT

APRIL 25, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Texas 121L Brazos	$2,310,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3935; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4956]

ARKANSAS

LOAN ANNOUNCEMENT

APRIL 25, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Arkansas 33N Polk	$20,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3936; Filed, May 13, 1955; 8:50 a. m.]

[Administrative Order 4957]

ARKANSAS

LOAN ANNOUNCEMENT

APRIL 25, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Arkansas 26Y Fulton	$100,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3937; Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4958]

INDIANA

LOAN ANNOUNCEMENT

APRIL 26, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Indiana 27N Decatur	$165,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3938; Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4959]

INDIANA

LOAN ANNOUNCEMENT

APRIL 26, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended,

a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Indiana 27P Decatur	$50,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3939, Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4960]

INDIANA

LOAN ANNOUNCEMENT

APRIL 26, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Indiana 44H Allen	$218,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3940; Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4961]

LOUISIANA

LOAN ANNOUNCEMENT

APRIL 27, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Louisiana 7V Grant	$500,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3941; Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4962]

ARKANSAS

LOAN ANNOUNCEMENT

APRIL 27, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan Designation:	*Amount*
Arkansas 32H Benton	$1,230,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3942; Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4963]

VIRGINIA

LOAN ANNOUNCEMENT

APRIL 27, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Virginia 11AF Rockingham	$275,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3943; Filed, May 13, 1955; 8:51 a. m.]

[Administrative Order 4964]

COLORADO

LOAN ANNOUNCEMENT

APRIL 27, 1955.

Pursuant to the provisions of the Rural Electrification Act of 1936, as amended, a loan contract bearing the following designation has been signed on behalf of the Government acting through the Administrator of the Rural Electrification Administration:

Loan designation:	*Amount*
Colorado 50A Southeast	$3,500,000

[SEAL] ANCHER NELSEN,
Administrator.

[F. R. Doc. 55-3944; Filed, May 13, 1955; 8:51 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

HILDEGARD BOETTERN

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Hildegard Boettern, Rindogaten 6, Stockholm, Sweden; Claim No. 44068, Vesting Order No. 3973, Safe Keeping Account No. 19-100301; $4,258.86 in the Treasury of the United States.

Ten (10) shares no par value common stock of Hardman, Peck & Company, New York, with a stated value of $1.00 per share, being a one-half interest in the 20 shares represented by Certificate No. 127, registered in the name of the Alien Property Custodian, in the custody of the Federal Reserve Bank of New York.

One diamond brooch in Safe Keeping Account No. 19-100301.

Executed at Washington, D. C., on May 9, 1955.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 55-3995; Filed, May 16, 1955; 8:49 a. m.]

HENDRICUS PLANT

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property located in Washington, D. C., including all royalties accrued thereunder and all damages and profits recoverable for past infringement thereof, after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., and Property

Hendricus Plant, Wassenaar, The Netherlands; Claim No. 42754; property described in Vesting Order No. 671 (8 F. R. 5004, April 17, 1943), relating to United States Letters Patent No. 1,918,558.

Executed at Washington, D. C., on May 9, 1955.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 55-3996; Filed, May 16, 1955; 8:49 a. m.]